EXECUTIVE OFFICE OF THE PRESIDENT
OFFICE OF THE U.S. TRADE REPRESENTATIVE

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SECTION 301 INVESTIGATION: BRAZIL'S ACTS, POLICIES, AND PRACTICES RELATED TO DIGITAL TRADE AND ELECTRONIC PAYMENT SERVICES; UNFAIR, PREFERENTIAL TARIFFS; ANTI-CORRUPTION ENFORCEMENT; INTELLECTUAL PROPERTY PROTECTION; ETHANOL MARKET ACCESS; AND ILLEGAL DEFORESTATION

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MONDAY
JULY 6, 2026

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The Section 301 Committee convened at the U.S. International Trade Commission, Main Hearing Room, 500 E Street SW, Washington, D.C., at 10:00 a.m., Phillip Butler, Panel Chair, presiding.

PRESENT:

PHILLIP BUTLER, Office of the U.S. Trade Representative; Panel Chair
TRACY CARSON, Department of Health and Human Services
AYSHA GHADIALI, Department of Agriculture
RANDY HICKS, Department of Labor
TYLER HUBLER, Department of Agriculture
SABINA NEUMANN, Department of Agriculture
CLARE OTTING, Department of Commerce
MEGAN PASTER, Office of the U.S. Trade Representative
TOBIAS REYNOLDS, Department of Commerce
SARAH SULLIVAN, Department of Treasury
NICHOLAS VOLTAGGIO, Department of Treasury
RICHARD WESCH, Department of State

WITNESSES:

ANDREA ALMEIDA, Uniao Nacional do Etanol de Milho, Brazilian Corn Ethanol Association, UNEM
ASHLEY AMIDON, International Wood Products Association
DAN ANTHONY, We Pay the Tariffs
JODY BICKETT, Wholesome Sweeteners
MARK BITTING, Gehring Montgomery, Inc.
CHRIS BLILEY, Growth Energy
BILL BULLARD, R-CALF USA
MICHAEL CARLE, Sweet Harvest Foods
FERNANDA CARNEIRO, Brazilian Agricultural and Livestock Confederation (CNA)
CLAUDIA CHAVES, Lambertucci Trade Solution
CELSO FIGUEIREDO, Uniao da Industria de Cana-de-Acucar e Bioenergia, UNICA
MATTHEW FROSTIC, National Corn Growers Association
CLINT HAGEN, American Sugarbeet Growers Association & U.S. Best Sugar Association
DAN HANEY, Alltech, Inc.
EDWARD HUBBARD, Renewal Fuels Assoc
BETH HUGHES, American Apparel & Footwear Association
MARNI KARLIN, Stonyfield Organic
ANDREW LAVIGNE, American Seed Trade Association
MARCOS MATOS, Brazilian Coffee Exporters Council, CECAFE
ANNE MCKINNEY, U.S. Chamber of Commerce
JOAO MARCELO MESSAS, Brazilian Association of Honey Exporters
STEFANO MOZZI, Bauducco Foods Inc.
VINICIUS NUNES PINTO, DrumWave Inc.
ARLEN PENNER, Prairie Imports LLC
GUSTAVO PESSOA, Professor of Economics & Finance, Fundacao Getulio Vargas
JOSE LUIZ PIMENTA, JR., ABICS: Brazilian Instant Coffee Association
JAMES POOLE, Obelisk Tech Systems
KRISTINA ROSALES, American Chamber of Commerce for Brazil

RODRIGO A. de OURO PRETO SANTOS, Brazilian IP Association, ABPI
ANDREW SARGEANTSON, Sunland Trading, Inc
ANDRESSA SILVA, ABIARROZ
JENNA STANTON, U.S. Cattlemen's Association
MELINDA ST. LOUIS, Director, Global Trade Watch, Public Citizen
VINICIUS VANZELLA, SAGMA
PAULO WENCESLAU, FN USA Inc.
MARK WILSON, Sociedade Rural Brasileira

ALSO PRESENT:

TYRELL BURCH, International Trade Commission

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P-R-O-C-E-E-D-I-N-G-S

(10:12 a.m.)

MR. BURCH: Would the room please come to order?

MR. BUTLER: Thank you. Good morning and welcome. The Office of the United States Trade Representative, in conjunction with the Interagency Section 301 Committee, is holding this public hearing in connection with the Section 301 investigation of Brazil's acts, policies, and practices related to digital trade and electronic payment services, unfair preferential tariffs, anti-corruption enforcement, intellectual property protection, ethanol market access, and illegal deforestation, initiated in accordance with the specific direction of the President on July 15, 2025.

On June 1, 2026, the Trade Representative determined that certain of Brazil's acts, policies, and practices related to digital trade and electronic payment

services, unfair preferential tariffs, anti-corruption enforcement, intellectual property protection, ethanol market access, and illegal deforestation are unreasonable or discriminatory and burden or restrict U.S. commerce and are therefore actionable under Section 301 of the Trade Act of 1974. Detailed information concerning this investigation is set out in the Federal Register notices published on July 18, 2025 at 90 Fed. Reg. 34069 and June 4, 2026 at 91 Fed. Reg. 33854. The notices are also available on the USTR web page.

The purpose of this hearing is to receive public testimony regarding the proposed action to be taken in the investigation. Consistent with the rules and procedures set forth in the June 4, 2026 Federal Register notice, witnesses have provided USTR and the Section 301 Committee with a summary of their testimony in advance of today's hearing. The Section 301 Committee will carefully consider today's testimony, as well as all written

comments in response to the Federal Register Notice of Determination. The Section 301 Committee will then make a recommendation to the Trade Representative regarding the final action to be taken in this investigation.

Before we proceed with testimony, I will provide some procedural and administrative instructions. Please note that no cameras or video or audio recording will be allowed during the hearing. The hearing is scheduled for two days and will conclude on Tuesday, July 7. Note that because of the Section 1 hearing planned for tomorrow on the investigations of acts, policies, and practices of various economies related to the failure to impose and effectively enforce a prohibition on the importation of goods produced with forced labor, the Brazil Section 301 hearing will be in Hearing Room A tomorrow.

A written transcript of this hearing will be posted on the USTR website as soon as possible after the conclusion of this hearing.

We have 14 panels of witnesses in total with 80 individuals scheduled to testify. The provisional schedule has been posted on the USTR website. Today we will proceed with panels 1 through 7 and then we will continue tomorrow with panels 8 through 14. We will have a brief break between panels, a one-hour break for lunch, and, if time allows, a brief break in the afternoon.

Each witness appearing at the hearing is limited to five minutes of oral testimony. The light before you will be green when you start your testimony, yellow means you have one minute left, and red means your time has expired.

After the testimony from each panel of witnesses, the Section 301 Committee will have an opportunity to ask questions. All questions will be from agency representatives. There will be no questions accepted from the floor. Committee representatives will generally direct their questions to one or more specific

witnesses. We will not be accepting post-hearing rebuttal comments for this hearing.

Given the number of witnesses in the schedule, we request that witnesses, when responding to questions, be as concise as possible. We likewise ask witnesses to be understanding if and when the chair asks the witness to conclude a response.

I'd also like to remind the witnesses to please speak into the microphone. Pull the microphone up to your face so that we can hear you and the court reporter can hear you.

With that, I will move on to the agency introductions. We are pleased to have international trade and economic experts from a range of U.S. government departments and agencies here today. If you could introduce yourself, please.

MR. HUBLER: Good morning. Tyler Hubler with the U.S. Department of Agriculture.

MS. OTTING: Claire Otting from the U.S. Department of Commerce.

MS. CARSON: Good morning and good afternoon. Tracy Carson with the Department of Health and Human Services, Office of Global Affairs.

MR. HICKS: Good morning. Randall Hicks, Department of Labor.

MS. SULLIVAN: Good morning. Sarah Sullivan, Department of the Treasury.

MR. BUTLER: And my name is Phillip Butler. I'm from the Office of the United States Trade Representative. I would like to thank all of the panelists here for their participation and support with this hearing. And with that, we will proceed with Panel 1.

First up, Ms. Silva, the floor is yours. You have five minutes.

MS. SILVA: Okay. Check. Good morning. Good morning, Mr. Chairman, members of the committee, and all participants. My name is Andressa Silva, Executive Director of the Brazilian Rice Industry --

MR. BURCH: Please move your microphone

a little bit closer.

MS. SILVA: -- Association, representing 68 member companies that account for over half of Brazil's milled rice market. Because a 25-percent tariff on Brazilian processed rice would immediately disrupt U.S. supply chains and harm consumers, ABIARROZ respectfully requests the exclusion of long-grain processed rice under tariff codes Heading 1006 from the proposed additional duties.

Tariff-free access is vital for U.S. small businesses and regional supply chains. The proposed tariff would disrupt their operations, also affecting logistics, storage, transportation, and ports, while increasing dependence on concentrated Asian sources. So my remarks focus on three points: regional supply diversification, the operational impact on U.S. businesses, and consumer protection against artificial inflation.

Based on U.S. trade and tariff data, for the last five years, the United States needs

7.7 million metric tons of rice annually for domestic and export commitments. With domestic production averaging 6.3 million tons, a natural gap of 1.3 million tons makes imports essential for food security and export agreements.

Brazil is the third-largest supplier for long-grain variety, with a 5.5-percent market share, providing niche distributors and private-label programs, which are the main market for our product, with premium, uniform, nonstick rice. This supply is vital because 78 percent of U.S. long-grain imports are highly concentrated in only two sources, Thailand and India. Relying on this duopoly exposes U.S. companies to trans-oceanic disruptions and volatile export quotas.

In contrast, Brazil provides a stable, market-driven alternative in the Western Hemisphere. Logistically, regional shipping from Brazil avoids maritime choke points, taking half the transit time of trans-Pacific voyages. This tariff will not boost domestic production.

It will simply penalize a close geographic partner and force U.S. buyers deeper into Asian dependencies.

Operating on narrow profit margins, these small businesses cannot absorb a sudden 25-percent cost shock or product change expenses. This tariff acts as an immediate operational hazard, forcing companies to pass higher costs directly to American consumers.

Data proves that additional duties introduce artificial rigidities into basic food staples. USDA reports show that during the 2025 cycle, global prices dropped by 22.24 percent due to an international surplus and India lifting export limits. Normally, this brings retail relief. However, BLS data shows that tariffs insulate domestic retail prices from global corrections, keeping prices artificially high and worsening the public perception of food inflation.

In conclusion, excluding these specific long grain lines supports the U.S. food network,

safeguards small businesses and protects consumers. Therefore, I respectfully request the USTR to grant a formal exclusion for these three subheadings under tariff code Heading 1006 for long grain brown, polished, and parboiled rice. Thank you for your time and consideration.

MR. BUTLER: Thank you. Mr. Bitting.

MR. BITTING: Good morning. My name is Mark Bitting. I am the president of Gehring Montgomery, a small distributor in Warminster, Pennsylvania, right outside of Philadelphia. Thank you for the opportunity to appear today. I'm here to support the administration's decision to exempt carnauba wax imported from Brazil from the proposed Section 301 tariffs and to elaborate on why maintaining this tariff exemption should continue in perpetuity.

Carnauba wax is a natural vegetable wax harvest from the leaves of the carnauba which only grows commercially in northeast Brazil, nowhere else on the earth. There is no domestic

production of carnauba wax in the United States. The palm does not grow here in any commercial way, and there is no U.S. industry that would be protected by imposing tariff. Tariff on carnauba wax would therefore not encourage American production. It would simply become a tax on the American people, manufacturers, farmers, food packagers, pharmaceutical companies, retailers, and ultimately consumers.

Our company, Gehring Montgomery, supplies carnauba wax to the entire United States across food processing, agriculture, pharmaceuticals, cosmetics, personal care, and industrial manufacturing. We are asking that the United States maintain the tariff exemption for this natural agricultural raw material, which cannot be produced in this country and is a critical raw material used for American agriculture, food preservation, and regulated consumer products.

The most important point I want to make today is that carnauba wax is not a luxury item.

It is a plant-based renewable material that has long been accepted for the food grade applications in the United States. Carnauba wax is a functional and necessary agricultural material. The U.S. Food and Drug Administration recognizes carnauba wax as generally safe for use in food for human consumption.

One of the most important uses in edible coatings are for fruits and vegetables, including apples, citrus, cucumbers, peppers, avocados, and other produce sold throughout the United States. These coatings help reduce moisture loss, preserve appearance, extend shelf life, and reduce spoilage during transportation and storage. In a country where food costs and food waste are already serious concerns, making this material more expensive would move us in the wrong direction.

It is also used as an inactive ingredient for pharmaceutical tablets, where it can help polish, coat, protect, and support the handling of finished dosage forms. If the cost

of carnauba wax is increased, companies would not simply absorb the cost forever. Some will pass through to customers. Others will look for lower cost synthetic or artificial alternatives. In my view, that would be poor public policy.

Carnauba wax is a natural, proven material with a long history of safe and effective use. Tariffs on carnauba wax could push the U.S. market toward substitutes that may not have the same natural origin, acceptance, performance, and consumer confidence.

It is also important to understand that carnauba wax has unique performances. The economic impact would reach far beyond the U.S. importers. They are already managing higher costs for labor, freight, energy, insurance, and compliance.

There is also the issue of consistency in tariff treatment. In prior communications with the Department of Agriculture and the Trade Commission, I explained that carnauba wax warrants tariff treatment consistent with other

similar situated agriculture wax products. For these reasons, I respectfully request that the Section 301 Committee maintain the exemption provided for carnauba wax.

In closing, a tariff on carnauba wax would not punish a foreign competitor in favor of an American producer because no American producer exists.

MR. BUTLER: Thank you. Your time has expired. Mr. Vanzella, please.

MR. VANZELLA: Okay. Good morning. Thank you for the opportunity to testify today, and congratulations on the 250th birthday of your independence. My name is Vinicius Vanzella. I'm president of the South American Gelatin Manufacturers Association, known as SAGMA, and CEO of Gelprime. SAGMA represents companies headquartered in South America, the United States, and Europe. Together, our members are deeply integrated into U.S. manufacturing supply chains that support thousands of American jobs across

pharmaceuticals, nutrition, supplements, food, and confectionery.

We respectfully request that USTR exclude edible gelatin and peptones and their derivatives, including protein isolates from any tariffs resulting from the Section 301 investigations into Brazil. Our specific HTS lines can be found in our submitted comments to the USTR. These products are not luxury goods, but are critical inputs for U.S. pharmaceutical manufacturing, medical and nutrition products, dietary supplements, and food and confectionery production. Gelatin is a natural protein made primarily from beef hides that is used to manage textures, stability, functionality in a wide range of products. Collagen, also mainly derived from bovine sources, is a protein available in powder form, typically as collagen peptides.

While the mention of gelatin might conjure images of sweets, the reality is that both gelatin and collagen are critical

components across health and medical care. They help deliver nutrition to seriously ill patients who cannot ingest solid food, make pediatric formulations possible for children who cannot swallow pills, improve wound care techniques by being processed into absorbable sponges and powders, and they form the hard and soft capsules for drugs that millions of Americans rely on every day.

Gelatin is indispensable for all our drug delivery systems, including over-the-counter drugs, generic and branded prescriptions, medications, and advanced therapeutical products consistently used by Americans, from households names like Tylenol and Advil to specialized medicines used in hospitals. Gelatin’s unmatched biocompatibility, digestibility, and gelling properties make it uniquely suited to these applications. There are no viable alternatives available at this scale.

Collagen is also central to America's

fast-growing health and nutrition market. The Council for Responsible Nutrition states that over 75 percent of Americans rely on daily supplements for their various health and dietary needs. Here, collagen plays an integral role in supplements that support healthy aging, joint function, pain reduction, and mobility improvement. It is also an essential input for protein products across a range of goods.

While the United States is able to produce high-quality gelatin and collagen, current domestic supply and manufacturing capacity are simply insufficient to meet the market demand. Brazil is a major high-quality supplier to U.S. manufacturers, accounting for around half of U.S. gelatin and collagen imported for use in pharmaceuticals, supplement, and food industries.

Elevated duties on Brazil's gelatin and collagen would almost certainly force U.S. manufacturers of supplements and medicines to seek supply from other global sources,

disrupting longstanding and trusted trade relationships. This was evidenced during the period of elevated IEEPA tariffs on Brazil last year, which temporarily displaced Brazilian supply in favor of other nations, such as China, already the second-largest trading partner in this market, as well as certain European countries. This also introduced significant volatility into the market.

Over decades of partnership, U.S. manufacturers have formulated their products around the technical specifications of trusted Brazilian gelatin and collagen supply, helping to safeguard product standards for American consumers. Like the U.S., Brazil is a leader in adhering to rigorous regulations, procedures, and ISO standards that certify the quality and safety of its products. Major U.S. manufacturers depend on a stable supply of gelatin and collagen, and Brazil is one of the few countries capable of producing them at scale needed to meet U.S. demand. Increased duties

could force U.S. manufacturers into a costly, lengthy reformulation process and increase the likelihood of reliance on alternative global suppliers that may not meet the same scale requirements for U.S. demand.

In conclusion, duties on gelatin and collagen peptides imported from Brazil risk unintended outcomes that would force U.S. manufacturers to face higher import costs and disrupt established supply chains, with potentially severe consequences for both American manufacturers and consumer health. So, therefore, consistent with the Trump administration's position to exempt products not produced in sufficient quantity in the United States, we respectfully request that you exclude from this action edible gelatin and peptones and their derivatives, including protein isolates.

Thank you very much for your time and consideration, and I look forward to your questions.

MR. BUTLER: Thank you. Mr. Junqueira.

MR. JUNQUEIRA: Thank you. Appreciate your time. My name is Marcelo Junqueira. I'm a Brazilian farmer and the vice president of Brazilian Rural Society. SRB, as we call, is a 107 years old farmers association whose aim is to protect private property right, promoting rural development, and enforce Brazil's rule of law.

To begin with, it's important to note that the USTR Section F report is based on a fundamentally mischaracterization of the Brazilian environmental law. It accused Brazil of tolerating illegal deforestation as a systemic practice. The data below will show the contrary.

In the 2016, Embrapa, Brazilian Agricultural Research Corporation, demonstrated that the land use for agricultural purpose occupies only 7.6 of Brazil's territory. NASA has confirmed Embrapa's data on Brazil's planted area. NASA's studies shows that Brazil protects and conserves native vegetation on over 66

percent of its territory, while cultivating mere 7.6 of its land. As comparison, Denmark cultivates 76.8 percent of its land, a tenfold comparison to Brazil, followed by Ireland approximately 75 percent, the Netherlands 66 percent, United Kingdom 64 percent, and Germany 57 percent.

Furthermore, Brazil's forest code, the law 12,651 of 2012, is not to be taken lightly. It demands legal reserve up to 80 percent of the Amazon's biome, mandating georeferenced registration of every rural property, and establishes permanent preservation area along the riverbanks, hilltops, and slope that cannot be used differently under any circumstances. These are among the strictest land use laws in the world.

The report claims that Brazil lacks adequate effective cross-checking between property registries and satellite data. This is factually incorrect. Official data from the National Institute for Space Research, INPE,

through its real-time deforestation monitoring projects, PRODES, recorded a deforestation rate of 570,600 hectares in the Amazon from August 2024 to July 2025. This represents an 11-percent decrease when compared to the previous period, and the lowest rate in 11 years. It marks the third consecutive decrease with a cumulative drop of near 50 percent since 2022. In the Cerrado, which is a savanna-like area in the center of Brazil, the decrease was about 11.5 percent, marking the second consecutive year of decline.

Brazil operates both PRODES and DETER, advanced satellite system run by INPE that monitors 100 percent of the legal Amazon with nearly 95 percent accuracy, issuing daily deforestation alert. Since 2026, the new PRODES panel has been cross-referencing every satellite-detected deforestation event, all of which in due compliance with a legal authorization. This shows in real time exactly what is and what is not legal, precisely the

mechanism USTR alleges not to exist.

Now let's talk about proportionality. Brazil's total private land are covered approximately 351 million hectares, 41 percent of the national territory. The total deforestation recorded by INPE in 2025 across both Amazon and Cerrado represent less than 0.4 percent of the land base, private land base. In the Amazon alone, it's less than 0.6 percent. These are not the numbers of a country whose agricultural sector is built on illegal clearing. These are the numbers of a country successfully managing a residual enforcement challenge at the frontier, while expanding agricultural output to record levels and reducing deforestation for the third consecutive year.

Finally, and most importantly, tariff will severely disrupt mutually-benefit relationship. This is not one-way street. 2024, Brazil exported close to $12 billion agricultural products to the United States,

soybean coffee, beef, orange juice, sugar, helping keep food prices accessible for American families, while the United States exported over $54 billion in goods, including machinery, fertilizer, crop protection, and agricultural technology that enhanced Brazil's farm productivity. Our two countries do not compete. We complete each other's supply chain.

Tariffs that weaken Brazilian agriculture would also harm American input suppliers, machinery manufacturers, and consumers altogether.

MR. BUTLER: Thank you. Your time has expired.

MR. JUNQUEIRA: Just finishing.

MR. BUTLER: Your time has expired. We've let you go over.

MR. JUNQUEIRA: Thank you for your time.

MR. BUTLER: Thank you. Mr. Wilson.

MR. WILSON: Good morning. My name is Mark Wilson. I'm a seventh-generation corn and

soybean farmer from Toulon, Illinois, and I've farmed full-time since 1988. I'm also the chairman of the U.S. Grains and Bioproducts Council and a member of the Illinois Corn Marketing Board.

The U.S. Grains and Bioproducts Council represents 200,000 farmers on over 90 million acres of land and 200 ethanol plants across the USA. We work to ensure market access for our members who produce corn, sorghum, barley, distiller dried grains and solubles, and ethanol. With full-time presence in 30 locations, the council operates programs in more than 70 countries, promoting U.S. exports around the world, including to Brazil.

It is my privilege to be here today to testify that this 301 investigation on Brazil is about several issues of critical importance to U.S. grain farmers and ethanol producers. First, we will discuss the implications of the high tariff Brazil imposes on U.S. ethanol and how it undermines reciprocal market access. We

will then also highlight Brazil's prohibitive measures within RenovaBio that effectively prevents participation from U.S. companies, denying them access to an important market mechanism. And lastly, we will describe how Brazil's carbon credit accounting methodologies, sustainability practices, and second crop corn distort competition and disadvantage U.S. ethanol. Taken together, these measures have created significant new barriers for U.S. farmers and ethanol producers and warrant strong U.S. policy response.

First of all, Brazil's current 18percent tariff on imported U.S. ethanol creates a major trade barrier, significantly increasing the cost of American ethanol while Brazil ethanol faces a minimal 2.5 percent most favored nation status rate here in the U.S. This disparity in tariff rates directly limits the volume and value of U.S. ethanol exports to Brazil.

In 2024, for example, the U.S. imported

more than $200 million worth of ethanol from Brazil but exported only $52 million worth of ethanol to Brazil. The gap underscores how the tariff restricts market access for American producers and depresses trade flows.

The Brazilian ethanol tariff is widely considered protectionist, shielding Brazilian ethanol industry as it pivots toward expanding corn ethanol production against competition from U.S. suppliers. With Brazil upholding its tariff, despite appeals from the American industry groups and importers, U.S. ethanol becomes less price competitive, particularly in regions like the northeastern Brazil where demand is growing and logistics favor imported supply.

Brazil's renewable biofuels policy aims to increase the role of biofuels in the Brazilian transportation market by focusing on reducing carbon intensities of fuel. RenovaBio was implemented in 2020 and is expected to generate 5 billion gallons of new demand through

2030. However, five years after implementation, only one U.S. ethanol plant is officially certified under the RenovaBio program, with negligible amounts approved and no verified generation of CBIOs, carbon traded credits with RenovaBio. This demonstrates continued limited access to the carbon credit market inside Brazil.

The current design of the program's certifying mechanism, RenovaCalc, disadvantages U.S. producers relative to life-cycle assessment of corn and a punitive default penalty, accreditation of land traceability standards, and extensive data requirements for corn ethanol plants. Brazil has aggressively advocated for recognition of life-cycle analysis scores that do not accurately represent land use change and deforestation trends in Brazil.

This is particularly glaring in the treatment of second crop corn. UN agencies, like the United Civil Aviation Organization, assigned indirect land use to change the penalty

to Brazilian second crop that is half the penalty assigned to U.S. corn ethanol, implying that their production is more likely to lead to more -- for us to use more land change, which simply is inaccurate and cannot be demonstrated as such through county-level geospatial data collected by the U.S. This lower inaccurate scoring directly impacts U.S. ethanol and ability to compete.

The Council urges USTR to pragmatically address unreasonable discriminatory, negotiate permanent removal of 18-percent tariff or implement a 25-percent universal reciprocal tariff, negotiate amendments to Brazil's non-tariff barriers embodied in RenovaBio, and have the U.S. government restrict issuances of RENs for the RFS to Brazilian ethanol companies until RenovaBio and RenovaCalc allow full participation. Thank you.

MR. BUTLER: Thank you. Mr. Levine.

MR. LAVIGNE: Good morning, and thank you for the opportunity to testify today on this

Section 301 review process. I'm Andy Levine, President and CEO of the American Seed Trade Association. We represent nearly 700 members across the United States, excuse me, the U.S. seed sector, and approximately 95 percent of which are small and medium-sized businesses that develop and distribute seed for virtually every crop planted by seed in America. As we like to say, alfalfa to zucchini in every production type, conventional, organic, and biotechnology.

Seed is unlike most products that move through international trade. It's not simply another commodity. Seed is the first input into virtually every agricultural crop planted by seed in the United States, and the movement of seed across borders is fundamental to agricultural innovation, food production, and farm productivity.

While ASTA supports the administration's efforts to address unfair trade practices where they exist, we respectfully submit that the facts do not support imposing

tariffs on planting seed as part of the Section 301 investigation of Brazil. Our written testimony comments address these issues in greater detail, but I'd like to leave you with three key points today.

First, we do not have evidence that Brazil is using tariffs to disadvantage the U.S. seed industry. Based on the information available to our members, Brazil is not imposing unfair tariffs on planting seed. In fact, many countries maintain low or duty-free treatment for seed because they recognize that seed is an essential agricultural input, not a finished consumer product.

ASTA continues to support stronger intellectual property protections, including Brazil's adoption of UPOV 1991. However, tariffs on seed would create greater economic harm than any potential benefit achieved through changes to Brazil's intellectual property policies.

Second, tariffs on seed ultimately

become higher costs for American agriculture. Unlike most manufacturers, seed companies must first grow a crop before they have a product to sell. They face the same costs as every farmer, fertilizer, crop protection products, fuel, equipment, irrigation, labor, and land. Tariffs increase costs throughout that production cycle, and those costs cannot be absorbed indefinitely.

Just as important, seed research and production are global by necessity. Counter-season production allows companies to accelerate breeding cycles and deliver improved crop varieties to farmers years sooner than would be possible otherwise. Without that global movement of seed, innovation slows, costs increase, and farmers have fewer choices. Ultimately, those additional costs ripple through the food supply chain.

And third, tariffs on seed would weaken, not strengthen, America's leadership in agricultural innovation. Developing a new crop variety typically requires 10 to 15 years of

research and multiple generations of breeding conducted across several countries. It is common for seed to move internationally numerous times during research, testing, production, conditioning, and commercialization before it even reaches a farmer. Tariffs interrupt that innovation pipeline. They increase research costs, discourage investment in U.S.-based breeding programs, and create incentives to conduct more research in seed production outside the United States rather than here at home. The result is not stronger American competitiveness, it's actually weaker competitiveness.

In closing, the question before the commission is whether tariffs on planting seed would help address the trade concerns that are the subject of the investigation of Brazil. From the perspective of the U.S. seed industry, we'd like to answer that as no. Brazil is not using tariffs to disadvantage American seed companies, and imposing tariffs on planting seed would not strengthen the U.S. seed industry.

Instead, it would increase costs for American farmers, slow agricultural innovation, reduce farmer choice, and weaken competitiveness of U.S. agriculture.

For those reasons, ASTA respectfully urges the administration to exclude planting seed from any tariff actions arising from this investigation. Thank you for the opportunity to testify, and I appreciate your consideration and would be pleased to answer any of your questions. Thank you.

MR. BUTLER: Thank you. We will now turn to questions. I ask that the members of the committee please restate your name before asking your question, and the first question is from USDA.

MR. HUBLER: My name is Tyler Hubler with the U.S. Department of Agriculture. Our first question is for Ms. Silva. The question is, in your testimony, you note that Brazil holds only 5.5 percent market share of rice in the U.S. market. Can you provide additional

detail on why other foreign sources and domestically grown American rice, which appears to have additional capacity to meet domestic demand, could not serve as alternative sources for Brazilian rice?

MS. SILVA: Thank you for your question. As the Brazilian rice doesn't compete with American rice in the same commercial channels, a tariff will not drive domestic substitution. If imports from Brazil were reduced, substitution would not happen overnight.

In the meantime, U.S. buyers would face supply adjustments and disruptions across the value chain and the consumers. So that's because Brazilian rice has different characteristics and serves a specific consumer profile complementing domestic, rather than competing with U.S. rice. Brazilian rice stands out for its fluffy texture, long and uniform grains, nonstick cooking performance, and consistent quality. So it's not going to drive domestic substitution at

all.

MR. BUTLER: Thank you. The next question is for Mr. Bitting. In support of your testimony requesting a tariff exemption for carnauba wax from Brazil, please describe using numerical estimates, if available, the potential impact of the proposed tariff on your company and the U.S. agri-food value chain that you supply, and are there alternative sources of supply, domestic or foreign?

MR. BITTING: Great question. The first part that I'd like to answer is that carnauba wax with a high tariff --

MR. BURCH: May you please pull your microphone a little closer?

MR. BITTING: Okay. Sorry. What would happen if carnauba wax wasn't exempted or the exemption would stop. I'll use this analogy. You have a truck in Los Angeles, in California, shipping avocados to Philadelphia. Right now, carnauba wax is used to coat that avocado naturally. Okay. What's going to happen there

is the market will find a way, and they will normally use a synthetic wax. That synthetic wax could be a PP, a polypropylene wax, or a polyethylene wax to coat that fruit to do the same things. This is a natural product. Its leaves grow back. There's nowhere else in the world.

So to me and to our company, it would affect us immensely because I employ 20 people. We distribute to some of the largest food companies, protecting their avocados, peppers, pears, apples. And I'm afraid that the market turns to a synthetic side, we don't know in the future what the PE wax or the PP wax or even a petroleum wax like paraffin or fissure trough wax, we can call them natural waxes, but they're really from the petroleum molecule. We don't want those on our fruits.

Carnauba wax has always been a great alternative. In fact, it's an American that actually founded the use of the carnauba dust on the leaves, S.J. Johnson. He came down to

Brazil, found out what he could use the dust on the leaves, and he created a wax, and we all know that as a fluor wax. It grew into the pharmacology and it grew into the vegetable and hardened fruits to protect it naturally.

And a lasting comment is on the question of, on the committee on deforestation. One of the concerns by your trade representative that agricultural products coming from illegal deforestation in Brazil. Unlike any other business, carnauba wax production does not require cutting down trees. It is purely a non-timber forest product. It grows back. In fact, Brazil calls it the tree of life. The leaves grow back and it keeps on employing well over 100,000 people.

I hope I answered your question.

MR. BUTLER: Yes, thank you.

MR. BITTING: You're welcome.

MS. PASTOR: Thank you. Good morning. My name is Megan Pastor with the Office of the U.S. Trade Representative. My question is for

Mr. Vanzella of SAGMA. In your testimony, you noted that the United States is able to produce high quality gelatin and collagen and also that Brazil is a major supplier accounting for around half of U.S. gelatin and collagen imported. Can you describe any barriers to increasing U.S. production of edible gelatin and peptides and elaborate on any unique aspects of Brazil's production that are critical to the U.S. supply chain?

MR. VANZELLA: Thank you for the question. So the production of gelatin and collagen are really tied to the supply chain of the raw material. Raw material mainly used could be either beef hides or pig skin. Beef hides in the U.S., if you look at the U.S. cattle hide, it's one of the highest quality cattle hides in the world. So the application of the beef hide from the U.S. goes to very high-end applications and very high value add products. You want to see a Cadillac seat made with beef hides from the U.S. because the

quality of the hides are very high.

Brazilian hides, they have a lower inferior quality, and the lower quality hides are turned into gelatin and collagen. So there is no way economically viable to use more than the raw material that's been used in the U.S.

And the other alternative is pig skin, and here in the U.S., the pig skin is also used a lot for bacon. So you don't have enough availability to have enough capacity, and the raw material cost doesn't add up to the final price of the ingredient. So these two raw material behaviors in the United States makes viable to import products from Brazil. Did I answer your question?

MS. OTTING: Hi, my name is Claire Otting with the U.S. Department of Commerce, and my question is for Mr. Junqueira. You mentioned that a tariff on Brazilian agriculture products would also harm American machinery manufacturers and input suppliers. Please elaborate on the specific industries and products you think would

be negatively impacted by the proposed tariffs.

MR. JUNQUEIRA: I appreciate your question. In fact, what I mentioned is that the Brazilian farmers use agricultural machines and some inputs from the United States. Including my own farm, I have 100 percent of the machines from John Deere. So whatever impact the import of agricultural products from Brazil may impact on the purchase or capacity of the farmers to purchase American products, as well. So that's the point of my mentioning that.

MS. OTTING: Thank you.

MS. CARSON: Good morning again. My name is Tracy Carson with the Department of Health and Human Services. And, Mr. Wilson, this question is for you. So please expand on why you think that a 25-percent tariff on the import of most Brazilian goods would encourage Brazil to eliminate its unreasonable acts, policies, and practices related to the ethanol market access. Thank you.

MR. WILSON: Thank you. We know we

must compete with ethanol, or with Brazil. They are formidable competitors domestically and in global markets when it comes to producing grain and soybeans. But ensuring our ethanol and ethanol plants will be treated fairly in a country would go a long ways toward the U.S. producer being able to play in a level playing field.

When Brazil increased its ethanol tariff to 20 percent in 2017, we were all caught off guard. They did lower it briefly when the Ukraine war started, and tried to lower fuel inflation for the country, but they have since increased it back to 18 percent. And several years now, they don't seem to be lowering it. They also seem to want to allow our ethanol companies to register to participate in the RenovaBio Program, and even though their facilities are registered to produce in our RFS program.

We want to be treated fairly in Brazil. The current system not only limits our export

opportunities in the U.S. ethanol, but it also prevents U.S. producers from generating CBIOs and capturing additional credit value in the Brazilian credit market while Brazilian producers continue to participate in U.S. programs, and addressing those barriers would help restore the market opportunities and create more level playing field for American farmers and ethanol producers.

MR. HICKS: Good morning once again. My name is Randall Hicks from the U.S. Department of Labor. This question is for Mr. Lavigne.

MR. BURCH: Excuse me. May you please turn on your mic and pull it closer?

MR. HICKS: Forgive me. Randall Hicks, U.S. Department of Labor. This question is for Mr. Lavigne. Can you elaborate on the specific disruptions that the proposed tariffs on Brazil would have on U.S., Brazil, or regional seed supply chains, and indicate which seed imports from Brazil are a priority for your members?

MR. LAVIGNE: Thank you for that

question, Mr. Hicks. As we look at the seed movement between Brazil and the U.S., one of the key areas that has impacted it over the last probably five to eight years is looking for alternative production areas to places around the world, such as China, that production there has increased. But as I said in my testimony, most seed movement throughout the world has little to no tariffs on them going in or out of countries, mainly because the countries realize that the seed is needed by their farmers and there's not direct competition in overproduction depending on seasonality and other things like that.

And so, right now, a great deal of the seed movement that we see is, one, vegetable seed that goes to Brazil for multiplication, and then comes back to the United States. A lot of that's open pollinated, so it's very technical to do. You just can't produce another -- no offense to anyone who produces t-shirts, but you just can't produce another t-shirt, then they

have to have the expertise to be able to do the pollination.

And then we do a great deal of research with our seed and testing its quality and its ability to perform like we want it to in similar environments in South America when we can't grow a crop here in the U.S. in the winter for Midwest crops and that seed is tariffed in going into Brazil or coming out of Brazil. Right now, it's very minimal going into Brazil in most crops, but vegetable would be key, but obviously row crops are a major production, major importance to production of seed in South America and Brazil is a key country.

MR. BUTLER: Okay. Thank you to this panel, and thank you for your testimony. We're going to take a couple of minutes just to set up for panel two.

(Whereupon, the above-entitled matter went off the record at 11:04 a.m. and resumed at 11:10 a.m.)

MR. BUTLER: Okay. Mr. Wenceslau, the

floor is yours.

MR. WENCESLAU: Good morning. My name is Paolo Wenceslau. I'm representing FN USA Inc., and I'm the head of operations USA. FN USA Inc. is an established importer and distributor in the United States specializing in natural petitioner chew products, with focus on high-quality bovine byproducts originating from Brazil. The company has a direct and immediate interest in this investigation, as the application of the proposed 25-percent tariff on specific HTSU codes will severely impact its operational viability, supply chain, and the final cost to the North American consumer.

This comment formally requests the exclusion of products classified under HTSU codes 0511.99.99, bully sticks, bovine; and 2309.90.90, preparations of the type used in animal feed from the list of products subject to the additional 25-percent tariff proposed under Section 301. We will demonstrate that such products fully satisfy the four exemption

criteria established by the USTR, being separable byproducts of the bovine meat supply chain, which has already been exempted in this same determination.

Maintaining these items within the scope of taxation would create an unjustified economic distortion, burdening the North American petitioner consumer without contributing to the elimination of the Brazilian practices investigated. The domestic supply of processed pizzles in the United States is structurally insufficient to meet demand, making import from Brazil essential for the stability of North American petitioner retail market. The present request is grounded in Section 301B and 304A of the Trade Act of 1974 and the exemption criteria described by the USTR in the determination of actionability published on June 1st, 2026.

The technical foundation is based on four pillars: One, parity with already exempted bovine products. Two, direct economic impact.

Bully sticks are high-circulation retail products. It's estimated that there are 67 million dogs in North American households, and demand for natural and healthy petitioner treats is structural. Based on our internal cost structure calculations, an additional 25-percent tariff on pizzles imported from Brazil results in an immediate increase of between 7 and 12 percent in the final retail price to our products, which leads to a direct inflationary effect on the petitioner consumer. The economic distortion is not limited to price. It affects the margins of small and medium-sized specialized retailers and regional distributors that depend on the cost of these items to maintain their operations. The petitioner sector has been a pillar of resilience in the United States economy, and the taxation of its most popular items unjustly harms this ecosystem.

Three, limit nexus with investigated practices. Four, insufficient domestic supply.

This is the central argument. The domestic supply of pizzles in the United States is physically incapable of meeting market demand. While Brazil possesses a herd of approximately 230 to 240 million head of cattle, ranking as the largest cattle herd in the world according to recent IBGE data, the U.S. slaughters about 33 million head annually, based on official statistics from the United States Department of Agriculture. The biological ratio of one pizzle per animal makes the domestic shortage a mathematical fact.

Furthermore, processing infrastructure, specific cleaning and dehydration, in North American slaughterhouses is limited. The reallocation of supply would require investments of millions of dollars and implementation time of two to three years, during which the market would suffer severe shortages. Brazil is therefore an irreplaceable source in the short and medium term.

FN USA ensures that 100 percent of its

imported products follow rigorous traceability standards. From farm origin to final processing, items comply with FDA and AAFCO requirements. This auditable chain ensures that products are not linked to forced labor practices or environmental violations, distinguishing them from non-traceable commodities and reinforcing the unnecessary nature of the tariff sanction. FN USA Inc. recorded a total import volume of 2,340 tons and projects a total import volume of 5,283 tons for 2026, sustaining 33 direct jobs in the United States and hundreds of indirect jobs in the logistic and retail chain.

The 25-percent tariff puts at risk capital investments made for the expansion of distributed centers and may force a reduction in staff to absorb the cost shock, damaging the company's contribution to the U.S. GDP. This fact is highly significant given that the Natural Farm odor-free bully sticks product manufactured and marketed by FN USA Inc. ranks

first on Amazon's best-sellers list. Consequently, a tariff increase on this specific product will directly impact the consumer market that prefers our product.

Conclusions and requests. In light of the foregoing, FN USA Inc. formally requests that USTR to grant the total exclusion of HTS U.S. Code 0511.99.99 and 2309.90.90 from the list products subject to the additional 25-percent tariff. Thank you.

MR. BUTLER: Thank you. Mr. Bullard.

MR. BULLARD: Thank you. I'm Bill Bullard representing R-CALF USA, which is the largest producer-only cattle trade association in the United States. Although cattle prices recently surged to all-time highs by chasing already inflated beef prices that were increasing for years while cattle prices were decreasing, our nation's diminished cattle industry is currently incapable of achieving self-reliance in producing arguably America's most important dietary protein, and that, of

course, is beef. This shortcoming threatens national security.

We agree with the trade ambassador that a 25-percent tariff on Brazilian goods is appropriate. However, we disagree with the plan to exempt beef and beef products from those tariffs. The USTR's investigation found a direct nexus between Brazilian cattle ranching and illegal deforestation, estimating that over 90 percent of Brazil's deforestation, both legal and illegal, is attributable to agricultural production. And between 2018 and ‘22, cattle ranching was estimated to drive 78 percent of commodity-attributed deforestation. And in 2023, the U.S. Senate Committee on Finance likewise found a causation between Brazilian cattle ranching and illegal deforestation.

Regarding the criteria for exempting beef, first, there's nothing peculiar about beef that would make tariffs on beef ineffectual in causing Brazil to reform its policies that this action attempts to achieve. And the other

criteria are inapplicable with respect to Brazil. The 40-percent tariff applied to Brazilian beef from August 2025 through November did not result in economy-wide disruptions, and it is the escalating penetration of imports from Brazil and other countries that is causing irreparable harm to the U.S. cattle industry by displacing domestic production and dismantling our industry's competitive infrastructure.

Thirteen years ago was the last time American ranchers invested to expand the beef cow herd. Three years of increasing upward trending prices is what led to that and stimulated that expansion. But imports of lower-cost beef and cattle, direct product substitutes for our domestic beef and cattle, increased immediately, and they increased nearly 30 percent in 2025 over what they were prior to the beginning of the herd expansion. Unsurprisingly, this additional surge in lower-cost imports contributed to the cattle price collapse that began in 2015 and continued for

eight years.

Midway through this prolonged price collapse, American ranchers began to liquidate the beef cow herd again. By last year 2025, the herd had fallen to the lowest level in 75 years. Alarmingly, while cattle prices were depressed and while the cow herd was first expanding and then liquidating, America's highly concentrated beef industry was charging American consumers ever-increasing prices for beef. Burgeoning beef and cattle imports hastened the systemic dismantling of the cattle industry's competitive infrastructure. Since 1980, we've lost over $650,000.50,000 beef cow operations and with them went 9.5 million mother cows and 86,000 feedlot operations.

America’s drastically diminished cattle supply chain then led to the dismantling of the beef industry. Since 2023, the largest big four beef packers began to shutter domestic plants and we have reached the point where we had the lowest production capacity and slaughtering

capacity in recent history in the United States. The U.S. cattle industry's competitive infrastructure has been decimated over the past several decades by an overly liberal trade policy as a principal cause. Import penetration in the U.S. market increased 150 percent from 1980 to 2025, rendering the domestic cattle industry incapable of sustaining itself, let alone expand to meet rising consumption.

Brazilian beef began penetrating the U.S. market in full force in 2020, adding to the burgeoning import volumes already nearly 90-percent larger in 2019 than in 1980. And from 2019 to 2025, beef from Brazil increased 598 percent in 2025. Brazil was America's third largest beef-importing country, contributing to the largest ever capture of the U.S. market by foreign countries in 2025.

Brazil monetizes illegal deforestation through beef export to the U.S. To exempt beef would be to exempt the very product most directly responsible for Brazil's actionable

conduct, and it would also significantly add to the already burgeoning volumes of imports that are undermining the very price signals and policy confidence American ranchers need to expand. Thank you.

MR. BUTLER: Thank you. Ms. Stanton.

MS. STANTON: Good morning. My name is Jenna Stanton, and I serve as the Director of Policy and Public Affairs for the United States Cattlemen's Association. USDA represents independent cow-calf producers, backgrounders, feedlot operators, processors, and livestock callers in nearly every state. You'll find the product of our members' life's work everywhere you buy American-raised beef.

We appreciate that USTR has done the hard work to reach this determination. Brazil's illegal deforestation has disadvantaged American beef producers. I'm not here to relitigate that problem. The record is clear. What I will do is show you what the on-the-ground reality looks like for U.S. ranchers and why Brazilian beef

products should not be exempt from a 25-percent tariff.

First, Brazil's unfair land and labor advantage. For decades, Brazil has been clearing native vegetation at a pace that's almost impossible to visualize. At the peak, we were looking at roughly 13,000 football fields a day. Over 30 years, the area cleared is larger than the state of Texas, and somewhere between 80 and 90 percent of that land ultimately goes to cattle production. So when we talk about Brazilian competitiveness in beef, we're not just talking about efficient ranchers. We're talking about a whole industry that depends on converting protected forest into cheap pasture and then feeding that into export supply chains.

On top of that, Brazil's own government maintains a public dirty list, a record of employers who have created working conditions equivalent to slavery, and cattle operations appear repeatedly. This has yielded a structural subsidy built on illegal land,

coerced labor, and corruption, which are not isolated abuses, but functioning business models that no U.S. rancher can or would ever want to compete with.

Second, cattle laundering and hollow traceability promises. As testified in our 2023 testimony to the Senate Finance Committee, cattle laundering is the practice of moving cattle through a series of intermediary ranches and feedlots to scrub the paper trail. The monitoring systems used by Brazil's big exporters are designed around that gap. They focus on direct suppliers and largely ignore the indirect ones, where the dirt actually lives. This is not a technical limitation, it is an intentional decision. Now, Brazil says, don't worry, we're going to fix this with a mandatory comprehensive traceability system by 2032. From a U.S. cattle producer's perspective fighting to stay in business today, simply taking Brazil at its word and waiting another six years is not a remedy, it's a betrayal of trust.

Third, all Brazilian bovine products, no carve-outs. Some will argue for exclusions, whether for lean trim, offal, or specialty cuts, but carving out particular HTS lines will invite creative relabeling at the customs dock. Product doesn't disappear, it just moves to the least protected category. We need a remedy that is comprehensive in scope and clean in design.

It's important to note that this is not a food security or affordability question. The U.S. cattle herd at our domestic processing capacity are capable of filling in some small gaps to supply the lean trim and variety meets the American consumers demand. Imposing tariffs on Brazilian beef will not empty grocery store shelves. It will however begin to level a playing field that has been tilted against U.S. ranchers for far too long. Right now, we're being asked to compete in a market where one side follows strict environmental, labor, and animal husbandry rules, and the other side gets a leg up for violating global standards.

To close, I want to speak clearly for the American ranchers I represent. Every box of Brazilian beef that enters this country produced on illegally-cleared land tells U.S. cattle producers that their investment in conservation and in compliance with our laws doesn't matter. The United States should not reward deforestation and corruption with premium access to the most valuable beef market in the world.

USDA urges USTR to adopt strong comprehensive tariffs on all Brazilian bovine products without loopholes or carve-outs and to do so in a timeline that matters to producers who are trying to stay in business today before it's too late. Thank you for the opportunity and I look forward to your questions.

MR. BUTLER: Thank you. Ms. Carneiro.

MS. CARNEIRO: Thank you for the opportunity to participate in today's hearing. My name is Fernanda Maceio Carneiro, Deputy Director of International Relations at the Brazilian Confederation of Agriculture and

Livestock, CNA. CNA represents more than five million Brazilian farmers and ranchers. These producers work to supply food, fiber, and renewable energy while complying with one of the world's most comprehensive regulatory and environmental frameworks.

Brazil and the U.S. have built one of the most important agricultural trade relationships. Our farmers compete in international markets, but they are also connected through integrated supply chains, investment, innovation, technology, and trade. Maintaining this partnership serves the mutual interests of both nations.

Today, I would like to highlight four points that we believe are central to the assessment of this investigation. First, Brazil's preferential trade agreements with Mexico and India do not reduce commercial opportunities for U.S. exporters. The U.S. remains Brazil's second largest supplier of imported goods. In the last year alone, U.S.

exports to Brazil exceeded $45 billion, more than five times the value exported by India and more than seven times the value exported by Mexico. These figures tell an important story. Despite the limited preferential agreements, U.S. companies continue to compete successfully and expand their presence in Brazil, in the Brazilian market.

Second, Brazil's ethanol market remains open to suppliers from the United States. Brazil applies the same tariff to all suppliers outside Mercosur in accordance with the most favored nation principle. The U.S. remains the leading external supplier of ethanol to Brazil, demonstrating that commercial opportunities remain available.

It is also important to note that the periods during which Brazil applied a zero tariff and tariff rate quotas reflected temporary market circumstances, which did not create any bilateral commitment requiring Brazil to maintain zero tariffs indefinitely.

Third, the competitiveness of Brazilian agriculture is not the result of illegal deforestation. It is the result of high productivity. Over the past two decades, Brazil's grain production increased by 213 percent, while the cultivated area expanded by only 70 percent. At the same time, the annual rate of deforestation in the Amazon has declined by 80 percent since 2004. In other words, Brazilian agriculture has come to produce more using proportionally less land.

Our competitiveness has been built through investment in research, science, technology, innovation, and productive efficiency, not through the illegal conversion of forests. The most recent data shows that Brazil has continued to strengthen its environmental governance through the expansion of satellite monitoring, environmental enforcement, and traceability systems. For this reason, CNA believes that environmental concerns should be assessed considering current data and

policies which demonstrate concrete progress in enforcement, monitoring, and environmental governance.

Fourth, when we examine the facts, the conclusion is clear. The available evidence does not demonstrate that Brazil's policies have caused material injury to U.S. commerce. On the contrary, the facts show that the trade between Brazil and the U.S. remains strong and mutually beneficial. U.S. exporters continue to have meaningful access to Brazilian market. Brazil remains an important destination for U.S. ethanol, and there is no evidence that illegal deforestation has created a competitive advantage capable of causing measurable harm to U.S. commerce.

For this reason, CNA believes that the elements contained in this investigation do not justify the adoption of broad trade measures that may affect highly-integrated supply chains, increase costs for U.S. companies, reduce the competitiveness of industries that rely on

Brazilian inputs, and at the same time, penalize millions of Brazilian farmers who strictly comply with the law. Thank you very much.

MR. BUTLER: Thank you. Mr. Haney.

MR. HANEY: Good morning. My name is Dan Haney, and I'm Alltech's Global Vice President of Operations. Alltech is a private, family-owned company, proudly founded and headquartered in the U.S., that delivers animal nutrition and crop science solutions. Our research and expertise in microbial fermentation have created nutritional technologies that support America's farmers in world-leading agricultural productivity. Farmers use Alltech's high-quality feed products, which enhance animal health and productivity, ensuring American farmers remain competitive and that consumers have access to affordable groceries.

We support the Trump administration's objectives of strong U.S. manufacturing. We want strong U.S. manufacturing because we are a U.S. manufacturer. We want U.S. innovation

protected because we are a U.S. innovator. We also advocate for fair practices because we are a successful exporter. However, Alltech, just like American farmers, needs certain inputs to be successful, and Brazilian yeast products are among them. For this reason, Alltech respectfully requests that the Section 301 action and the preceding exclude imports of Brazilian yeast.

Alltech produces its own yeast products through a proprietary process at its facility in Sao Pedro de Havia in Brazil. This facility relies on sugarcane molasses, for which Brazil is the world's undisputed production leader, and needed to be located close to molasses production centers. Our production relies on trade secrets. We cannot simply choose another supplier. Also, 70 percent of the yeast products we are requesting to be exempt from this action come from our facility. However, we are not the only company that relies on yeast products for animal feed. Import data

establishes that 90 percent of all yeast import volume from Brazil is destined for animal feed nutrition products. Exempting these tariff lines is necessary if we are going to keep costs down for American farmers.

To be clear, Alltech did not offshore existing U.S. production. It established production in Brazil because that is where the raw material it requires for its proprietary production process exists. The sole source from which we can obtain these particular yeast products is our facility in Brazil because of its close proximity to sugarcane molasses. Brazil is climatically and geographically better suited than the United States to producing vast quantities of sugarcane. The farm gate price differential for sugarcane in Brazil and the United States is 167 percent. There is simply not enough U.S. supply, nor will that change.

What we should do is ensure that American farmers remain competitive by safeguarding affordable access to Alltech's

proprietary feed products that boost their productivity. Excluding these tariff lines from the Section 301 action is consistent with the Trump Administration's policy of ensuring that certain specific commodities that cannot be sourced adequately from the United States are not subject to tariffs. For example, the Trump Administration exempted orange juice, coffee, and fertilizers from the tariffs it imposed on Brazil pursuant to the International Economic Emergency Powers Act. Likewise, there is no alternative whatsoever for the proprietary Brazilian yeast products that Alltech needs.

Moreover, imposing tariffs on these products is contrary to the Trump administration's objective of reducing the trade deficit. If the cost of a critical input rises, the finished good manufactured in America will be less competitive in foreign markets. An expansion of the trade deficit for the animal feed carries global security implications.

Currently, China is investing heavily

in animal feed production. It is the world's largest producer, producing approximately 330 million metric tons annually. If Alltech becomes less competitive, China will seize the opportunity to displace American market share in the United States and elsewhere to the detriment of our economic and security interests.

In conclusion, Alltech would like to reiterate what President Trump said to America's farmers in June 2026. He said, we're never letting the farmer down. We let the farmer down, we're letting the country down. U.S. farmers and livestock need Alltech's feed products, which require imports of Brazilian yeast products. Alltech, accordingly, requests that the Section 301 Committee ensure that the flow of this vital agricultural input continues unimpeded. Thank you.

MR. BUTLER: Thank you. We'll turn to questions now. We'll start with USDA again.

MR. HUBLER: Good morning. This question is for Mr. Wenceslau. In your

testimony submission, you discussed the importance of the Brazil-U.S. supply chains for bovine byproducts and limitations on U.S. capacity and investment. Could you discuss whether there are suppliers in third countries that would be cost competitive for your business?

MR. WENCESLAU: You asked about the countries?

MR. HUBLER Yes. Are there other country suppliers that you would consider outside of Brazil for your business?

MR. WENCESLAU: Actually, we are present in other countries, so we are in Australia, we are in Canada, we are in Mexico. But U.S. is the largest market with huge demand from consumers, and we want to serve this market the best way we can.

MR. HUBLER: And just to clarify, would you consider importing these products for your bully sticks from these other markets you described that you have a presence in?

MR. WENCESLAU: No, no, no. Actually, we produce in Brazil, and we have all the production facilities complying with all the standards from FDA and ensure the product with a very high quality to supply this market.

MR. HUBLER: Okay. So, for instance, Mexico as a suitable alternative. Okay. Thank you.

MR. HUBLER: This question is for Mr. Bullard, Ms. Stanton, and Ms. Carneiro. Mr. Bullard, we'll begin with you. If the current proposed remedy proceeds, including the exemption for beef from Brazil, could you provide any estimates of economic impact on members of your organization, including American workers? If the exemption were not given, what would the domestic industry or non-Brazilian foreign suppliers have the capacity to satisfy domestic demand?

MR. BULLARD: Yes, thank you. If the exemption were not granted for beef and cattle, we would fully expect Brazil to continue

reaching new record volumes of exports to the United States. From 2023 to ‘25, we saw imports increase 68 percent. During that same period, we saw retail beef prices increased 41 percent. So if the market were going to reduce the price of retail beef for consumers as a result of what we expect to be inflated volumes of beef if the exemption were not granted, it would already be visible in the marketplace, and it is not. And that's because of the high concentration of the retail and packing sector.

Now, if the exemption is granted, we would be sending the appropriate price signals to our U.S. cattle farmers and ranchers that if they make the long-term investment, and it takes about three years because of the long biological cycle cap, but if they make the long-term investment to begin rebuilding the herd and rebuilding our production capacity, then they will be confident that they will not be undercut by a government that is facilitating excessive volumes of imports that are price-depressing and

that will eliminate their opportunities. Thank you.

MS. STANTON: Thank you for that question. So approximately 70 percent of U.S. beef imports come from Brazil. And should we see this exemption granted for beef products -- we focus a lot, we put ourselves a lot in the cattle market and in the beef industry as well. We're one of the few free markets still left in the ag sector and that functions as well as we do, and that's on purpose. So we talk a lot about, especially in this era of, you know, small cattle herds in the United States and farms closing their doors at record rates, we talk a lot about market signals and what is the market signal that it's going to take for U.S. producers to stay in business. And at this kind of apex of generational transfer we're seeing a lot of next-generation come in either passing down the operation or first-generation producers coming in.

What is the market incentive for them?

What is the appeal for them to come into this industry? Is there going to be an industry for them to compete in in the next 20 years? And if we continue to see imports increase and products such as Brazilian beef to continue to come in the United States that is created and produced and raised at a level that is inferior to what we raise here in the United States, those producers are going to take that as a signal that this markets not for them, that, you know, we're just going to go with the cheapest product that we can find.

Kind of on the flip side there too, if this exemption is granted, we'll see that market signal and the market will self-regulate. We will potentially have to look at on the trim side of things and, for that side of the beef industry, maybe there are countries that we could potentially look at importing from that that have those same equivalency standards that we have here in the United States. You know, that's not off the table. We believe that that

that may be something that we have to look at. But I think what's really important right now is the signals that we're sending to our producers to incentivize them and keep them in business for operations that many of them and their families have operated for a very long time.

MS. CARNEIRO: Thank you very much for the question. I think the most important thing to emphasize here is that there is something called cattle cycle. Herd reduction is something normal in livestock cycle and Brazilian has also experienced something similar that the U.S. is experiencing right now in 2021. What is happening is that Brazilian beef is helping a supply gap in the current U.S. cattle cycle. We are we're sure that U.S. will surpass the situation such as Brazil has done in the past.

And we have to understand that we do not have competing products, we have complementarity products. They are made from different production systems that result in

different products. Brazil pasture based system it's completely different from the U.S. feedlot finishing. And Brazilian beef is used to complement mostly beef plants in the U.S. supporting supply stability, fat levels demand by consumers, and price balance.

MS. PASTOR: This is Megan Pastor with USTR once again. This question is for Mr. Haney from Alltech. Could you please elaborate on whether there are alternative non-Brazilian or U.S. suppliers that would be cost competitive for your business?

MR. HANEY: Yes. Thank you for your question. This is an Alltech proprietary process, so we're making our raw material in Brazil and importing it, so there's not another alternative supply without impacting our intellectual property. Were you talking about the finished product or the raw materials?

MS. PASTOR: I think you could speak to either or both.

MR. HANEY: Yes. So there is no

domestic supply for that this raw material.

MS. PASTOR: Thank you.

MR. BUTLER: Okay. Thank you to this panel. We will take a quick break.

(Whereupon, the above-entitled to matter went off the record at 11:44 a.m. and resumed at 11:50 a.m.)

MR. BUTLER: Thank you. Okay. We're going to start with panel three. Mr. Matos, the floor is yours. Thank you.

MR. MATOS: Good morning. Thank you for the opportunity to provide comments today. My name is Marcos Matos. I am the CEO of CECAFE, the Brazilian coffee exporters council, which represents 97 percent of all Brazilian coffee exports. Its neighbors ship Brazilian coffees to over 120 countries worldwide per year.

Coffee holds significant socioeconomic and cultural importance for both the United States and Brazil. When it comes to coffee, Brazil and the United States are indispensable

to one another. Brazil is the world's largest coffee producer and exporter. Brazilian coffee is a key component in the blends offered to American consumers. Its natural attributes, aroma, flavor, body, acidity, and sweetness, are distinctive and irreplaceable. Coffee drinks in the United States expect these characteristics.

Brazil is the coffee orange with an organized, efficient, and transparent production chain with indicators of compliance with social and environmental legislation, which is capable of credibly meeting all needs of the North American industry to guarantee its sustainable and daily supply of coffee to the population of the United States. The United States' domestic coffee consumption is projected at 26.5 million bags. In Brazil, coffee accounts for more than 30 percent of the U.S. coffee market, making Brazil its leading supplier.

Brazil coffees cannot be feasibly substituted. According to an economic impact study conducted by NCA, U.S. National Coffee

Association, more than 7 percent of the U.S. population consumes coffee. Annual spending on coffee and related products reaches $301 million per day, and coffee accounts for more than 8 percent of the total value of the U.S. food service industry. The U.S. coffee industry also supports over 2.2 million jobs and generates more than $101 billion in wages, benefitting all states and local communities. In total, the sector generates $343 billion annually, equivalent to 1.2 percent of the country's GDP.

CECAFE previously expressed profound commendation when the Mr. Trump administration included the majority of coffee-related harmonized tariff schedule, HTS codes, excepting them from the Section 301 tariffs on Brazil. Ensuring tariff-free imports of these coffee tariff codes will have significant benefits for the U.S. economy and for the nearly 200 million American adults who drink coffee each day.

In light of these circumstances, CECAFE respectfully submits this formal request for

adding bulk unflavored instant coffee, HTS harmonized tariff schedule 2101.11.21. That would bring significant further benefits to U.S. coffee companies, value-added manufacturers, and consumers, particularly those who are most price-sensitive.

In 2025, Brazil exported more than 15 million kilograms of unflavored instant coffee to the United States, a count of more than 30 percent of total annual U.S. imports for unflavored instant coffee for the past five years. The U.S. locks meaningful domestic production of unflavored instant coffee, yet it's a critical ingredient for ready-to-drink beverages and cold brew categories consumed daily by more than 53 million American adults.

Without tariffs relief under HTS 2101.11.21, U.S. value-added manufacturers face a structural disadvantage versus foreign competitors. Based on the substantial required demonstration, one, variable minimal U.S. production of flavor instant coffee. Two,

significant and growing demand driven by ready-to-drink and cold brew consumption. Three, the competitive harm tariffs would impose on domestic value-added manufacturers. CECAFE respectfully urges USTR to maintain all current coffee tariffs removal, zero tariffs, and to include HTS 2101.11.21 to the proposed index.

Termination of tariffs on most coffee and coffee products in November 25, enacted by under President Trump's administration, has corresponded with relative price stability for American consumers. Extending tariffs relief to include instant coffee would reinforce this stability and deliver additional benefits to consumer and the broader U.S. economy. Adding instant coffee to the tariffs removal would bring further benefits to the U.S. coffee economy, as it cannot be sourced domestically and contributes significantly to coffee in the most beneficial impacts to the United States.

Thank you very much for the opportunity to provide comments today.

MR. BUTLER: Thank you. Mr. Pimenta.

MR. MURRAY: Good afternoon, Chairman, members of the panel. Thank you for the opportunity to testify. My name is Jose Pimenta, and I appear on behalf of the Brazilian Instant Coffee Association, ABICS, which represents 100 percent of Brazil's instant coffee production. ABICS respectfully requests that the committee exclude unflavored instant coffee classified under HTS 2101.11.21 from the proposed 25-percent action. I will explain why a duty on the single input would raise costs for American manufacturers and working families while providing no meaningful leverage in the issues under reveal.

First, instant coffee is a critical input for several sectors of the U.S. economy, including ready-to-drink beverages, baked goods, confectionery, daily products, and institutional food services. The U.S. ready-to-drink coffee market alone is projected to grow at an annual rate of 5.6 percent between 2025 and 2030,

underscoring the need for a stable and affordable supply.

Leading U.S. coffee, food, and beverage companies, including firms representing more than 20 percent of domestic retail coffee sales and over 10 percent of total coffee consumption, depend on stable instant coffee supplies to sustain operations and pricing strategies. Brazil plays an indispensable role in the U.S. supply chain.

In 2025, Brazil supplied 22 percent of U.S. instant coffee imports, totaling 15,500 metric tons, primarily in extracts, concentrates, and granules. Brazilian instant coffee also offers unique solubility profiles, specific geographic origin blends, and internationally recognized quality certifications that cannot be effectively replicated by other suppliers. The supply chain directly affects American consumers. Around 11 percent of Americans drink instant coffee daily at a cost of just six to seven

cents per cup, particularly in budget-conscious households. An additional 25 percent Section 301 tariff would raise prices, pressure corporate margins, and disproportionately burden families that rely on affordable coffee, nor can this supply be easily replaced.

The U.S. instant coffee import market is highly concentrated, with Mexico and Brazil accounting for nearly 60 percent of total imports, while maximum prices are about 1.5 times higher than Brazil's, with limited access capacity in Colombia, Vietnam, and Indonesia. Alternative suppliers cannot readily fill the gap.

Equally important, Brazilian instant coffee follows strict Apex rules and quality standards, including classic, premium, excellence, and 100-percent Arabica classifications. Additional tariffs would trigger immediate shortages, higher costs, lower quality, and reduce competitiveness across the U.S. market, harming manufacturers, food service

operators, and consumers alike.

Most of the economic value of this trade is generated in the U.S. Brazilian instant coffee enters almost entirely built from blending, packaging, marketing, and distribution take place on American soil. A tariff on this product would, therefore, not penalize a finished foreign good, but would raise costs for domestic manufacturers and weaken the competitiveness of instant coffee products made in America.

The logistical implications are also significant. Over 81 percent of U.S. instant coffee imports enter through Texas, New York, and Louisiana, with Brazilian shipments concentrated in New Orleans, New York, Charleston, and Los Angeles. A sharp drop in Brazilian supply would disrupt key goals and mark Eastern hubs, creating shortages and putting industrial operations at risk.

Finally, duties on instant coffee would be neither practical nor effective in advancing

these investigations' objectives. Coffee trade operates within a transparent, market-driven agricultural system, separate from the digital trade, intellectual property, environmental, and payment practices under review. Past tariff increases show that sudden cost shocks reduce import volumes, disrupt supply chains, and quickly raise retail prices. Given the thin margins of U.S. and beverage producers, these costs would likely be passed on to consumers.

For all these reasons, we respectfully urge the exclusion of HTS 2101.11.21 from any additional session to your one duties. Thank you again for this opportunity and your time. Thank you.

MR. BUTLER: Thank you. Mr. Murray.

MR. MURRAY: Thank you for the opportunity to provide comments today. My name is Bill Murray. I'm the president of the National Coffee Association of the United States, which represents companies operating across all segments of the U.S. coffee industry

and in every U.S. state and territory. The coffee industry adds more than $343 billion a year to the U.S. economy and provides more than 2.2 million jobs.

NCAA commends and thanks the Trump administration for including most of the harmonized tariff schedule, or HTS, codes applicable to coffee in the proposed annex exempt certain imports from the proposed 301 tariffs on Brazil. Ensuring tariff-free imports of these coffee products will have significant benefits for the U.S. economy and for the nearly 200 million American adults who drink coffee every day.

We respectfully urge the committee to add bulk unflavored instant coffee, HTS 2101.11.21, to the annex. This would bring significant further benefits to U.S. coffee companies, to value-added manufacturers, and to consumers, particularly the most price-sensitive who rely on instant coffee. Instant coffee is one of the lowest-cost ways for consumers to

drink coffee as Americans continue to face high grocery prices.

Brazil is globally the largest producer of coffee, including instant coffee. As your investigation concluded, coffee is not a significant contributor to deforestation in Brazil. The United States is very minimal on flavored instant coffee production. Instant coffee is most often produced in countries where coffee is grown, given that producing instant coffee reduces the weight of the raw input, the green coffee, by more than 50 percent in the form of water and moisture that is removed from the input.

Shipping the raw material, the green coffee, for later processing into lighter weight instant coffee is prohibitively inefficient for U.S. coffee companies and value-added manufacturers. As such, unflavored instant coffee is not available from domestic sources in sufficient quantities to meet demand by U.S. coffee drinkers and coffee companies.

Value-added manufacturers rely on instant coffee as an ingredient in cold-brew and ready-to-drink coffee, which are the fastest-growing segments of the coffee market. More than 53 million Americans drink ready-to-drink and cold-brew coffee each day, roughly 20 percent of the U.S. population. Tariffs put significant pressure on U.S. manufacturing of ready-to-drink and cold-brew and put these manufacturers at a disadvantage in production and compared to their foreign competitors.

In 2025, Brazil exported more than 15 million kilograms of unflavored instant coffee to the U.S. Imports of unflavored instant coffee from Brazil have averaged more than 30 percent of the total annual imports here in the U.S. every year for the past five years. In addition, flavored instant coffee, HTS 2101.11.29, is already included in the proposed annex to receive duty-free treatment. There's no rationale for treating flavored and unflavored instant coffee differently,

especially since the majority of the instant coffee consumed and used in ready-to-drink and cold brew manufactured in the U.S. is unflavored.

Therefore, we thank the committee for exempting the HTS from most coffee products, and we respectfully urge you to add unflavored instant to the annex. Instant coffee is an unavailable natural resource that cannot be produced domestically. Imports of instant coffee contribute significantly to the U.S. economy, supporting price-sensitive consumers in U.S. manufacturing in the fastest-growing segment of the coffee market.

Thank you. And I look forward to your questions.

MR. BUTLER: Thank you. Mr. Messas.

MR. MESSAS: Members of the Section 301 Committee, thank you for the opportunity to participate in this important hearing. My name is Marcelo Messas, and I represent Abemel, the Brazilian Association of Honey Exporters.

Abemel represents the leading companies processing and exporting bee products in Brazil. Our members supply a significant share of the certified organic honey consumed in the United States and are deeply integrated in the U.S. food supply chain. Brazilian organic honey supports a wide range of American industry, from retail and private label brands to food manufacturing and health-related products.

Abemel is here today because we are concerned that additional tariffs under the Section 301 on Brazilian products, including organic honey, would harm U.S. consumers, business, and the broader supply chain. As an example, I want to highlight the following letters that USTR received in support of organic honey, excluding the Barkman honey from Kansas, the Sweet Harvest food from Minnesota, the Burleson from Texas, Pridy from Kansas, Lamex Food from Minnesota, Dutch Gold Honey from Pennsylvania, the Ashurst American Honey from California, and also the National Honey Packers

Association.

The United States produces a negligent amount of organic honey to meet its market demand. The U.S. consumes approximately 689 million pounds of honey annually. Organic honey accounts for hopefully 12 to 15 percent of the total U.S. consumption. Notwithstanding the growing role of the organic market, the U.S. produces only about one to four percent of its organic honey needs.

There are major structural limitations for the U.S. to overcome in growing its organic honey and reasons why Brazil is better positioned geographically to grow and supply this product to U.S. market. U.S. beekeepers face significant challenges, including colony loss, disease pressure, habitat constraints, and climate variability that impact the health and strength of the bees.

In addition, U.S. organic certification rules are strict. Bees must forage in areas free from private substances for several years,

and they cannot be treated with antibiotic. Under the current condition, most of U.S. honey cannot meet this requirement at scale, but Brazil can.

Brazil has a natural condition that allow for effective organic honey production. For one, Brazil bees are disease-resistant, thus requiring no antibiotic. In addition, Brazil has large and preserved forest areas in remote beekeeping regions with no pesticide exposure. That is why Brazilian honey can comply with strict U.S. organic standards and is currently the primary supplier of organic honey to the United States.

Excluding Brazilian organic honey from an additional tariff, it is in line with all the existing tariff exclusion where the U.S. recognized there is no domestic production. For example, the U.S. has offered tariff exclusion to Brazil, bee wax, tropical fruit, coffee, and orange. The case of organic honey is similar in the imports do not displace domestic production

because such production does not exist. The U.S. market relies on Brazilian organic honey to meet its needs. Moreover, organic honey is also a key ingredient for production of organic food products in the U.S.

We also know that according to Abemel studies, Brazilian organic honey generates meaningful economic value here in the United States. So each one dollar of imported honey creates approximately 5.5 dollars in added value in the U.S. economy, supporting jobs, manufacturing, packing, distribution, marketing, and retail.

The U.S. already experimented with high tariffs on Brazilian organic honey when IEEPA tariff were put in place last year. During that time, importers reduced purchases, supply tightened, and prices increased for retails and eventually for consumers. Additional tariffs would likely have the same result, less availability, high price, and reduced access to organic products. Thank you.

MR. BUTLER: Thank you. Ms. Chavez.

MS. CHAVES: Members of the Section 301 Committee, my name is Claudia Chavez. I appear on behalf of Joelma Lambertucci de Brito, founder of the Lambertucci Trade Solutions, a consulting firm specialized in organic honey supply and international trade. Joelma has more than 37 years' experience in the honey industry and wasn't able to attend due to a medical emergency. I have been working with the honey industry since 2003, working with connecting beekeeping communities with global markets, and my focus is on sustainability and fair trade practices.

Joelma and I share a long-standing commitment to certified organic and to build responsible supply chains between Brazil and the U.S. Together with our commercial expertise, we would like to make the following observations, and you're going to hear that from other panelists from the honey industry.

Like Marcelo said, the U.S. doesn't

produce organic honey at commercial scale. This reflects the realities of the forage availability and honey bee health and the organic certification requirements. The USDA data confirms that non-organic honey production in the U.S. has declined by more than 35 percent in the last decade, while the reliance on imports has increased to 80 percent of the total U.S. consumption.

The second observation is that there is no connection of organic honey with the practices under the Section 301 investigation. This section is concerned to deforestation and ethanol and digital trade. Organic honey plays the opposite in the deforestation topic. I'm involved in massive reforestation projects related to honey production in Brazil. We have one of the projects where we planted more than 180,000 trees, native trees, and we are set to plant another 170 in the next three years.

Our third observation is that organic honey is a distinct product classified under a

separate HTS and has its own certification, auditing, traceability, and dedicated supply chain. Our fourth observation is confirming what Marcelo said is the Brazil unique position to produce organic honey. Vast biodiversity with huge pristine forest areas, disease resistant Africanized bee populations, and year-round production. This offers reliable supply, and approximately 75 percent of the all organic honey imported in the United States come from Brazil. It would be impossible to replace that supply at the present.

American consumers seek for organic certified, clean label, traceable, mineral processed food. Organic honey fulfills all those expectations. We have submitted letters from U.S. companies, Marcelo mentioned, and they all recognize the importance of excluding the organic honey from these additional tariffs.

For these reasons, we respectfully request the organic honey classified under HTS 0409.00.0005 to be excluded from the additional

tariffs under this section 31. Thank you, and I welcome your questions.

MR. BUTLER: Thank you. Ms. Hughes.

MS. HUGHES: Thank you for this opportunity to appear before you on the proposed action on Brazil. My name is Beth Hughes. I'm the Vice President for Trade and Customs Policy at the American Apparel and Footwear Association. Representing more than 1,100 world renowned brands, our industry depends on access to both global customers and global suppliers. That access helps ensure that clothing, footwear, and travel goods purchased by American families are not only fashionable and affordable, but also ethically and sustainably produced and safe for consumers.

We appreciate President Trump's continued efforts to address unfair trade practices around the world, and we support holding our trading partners accountable through targeted trade remedies. However, in this investigation, tariffs on footwear are not the

answer.

About 97 percent of the apparel, footwear, and travel goods purchased by American families are imported, yet these products already face some of the highest tariff rates applied to any consumer goods. Footwear is a prime example. In 2025 alone, U.S. companies paid nearly $61 million in tariffs on footwear imported from Brazil. Despite the significant U.S. value embedded in these products, including intellectual property, leather, and textile inputs, footwear still faced an average trade-weighted tariff rate of 23.5 percent in 2025, compared with just 7.8 percent across all imported products. Additional tariffs would simply add to an already disproportionate burden, increasing costs for U.S. companies and, ultimately, American families.

Brazil is a critical sourcing alternative for U.S. brands and retailers, 10th by volume and 12th by value in 2025. Its footwear exports to the United States are

concentrated in leather footwear, representing 72 percent of imports in 2025, valued at $157.7 million, or 5.66 million pairs. Adding tariffs on Brazilian footwear, or even creating uncertainty about additional tariffs, risks shifting sourcing to other countries, where trade concerns are even more significant. That outcome would do little to address the underlying issues this investigation seeks to resolve.

American consumers are already seeing the impact of higher costs. Overall, footwear prices are up 5.2 percent compared with May 2025. Men's footwear prices are up 5.4 percent, women's footwear is up 6.2 percent, and children's footwear is up 2.3 percent. With the back-to-school shopping season now underway, this is precisely the wrong time to increase the cost of children's shoes and other everyday footwear that American families rely on. Additional tariffs on an already heavily-taxed sector would only raise prices further.

At the same time, continued uncertainty surrounding tariff policy makes these challenges even greater. It disrupts sourcing decisions, undermines long-term business planning, and increases costs throughout the supply chain. Greater certainty and predictability in trade policy are essential to strengthening U.S. competitiveness and supporting domestic manufacturing.

In closing, we respectfully urge that footwear does not become an unintended casualty of this investigation. Additional tariffs on Brazilian footwear would increase costs for American businesses and families without advancing the broader objectives of an American-first trade policy. We respectfully ask that Chapter 64 of the Harmonized Tariff Schedule of the United States exclude it from any additional tariff action resulting from this investigation.

Thank you for this opportunity to testify today, and I'm happy to answer your questions.

MR. BUTLER: Thank you. We'll turn to questions now. The first question goes to USTR.

MS. PASTER: Thank you. So this question is for Ms. Hughes. In your testimony, you request exemptions for all imports from Chapter 64 of the HTSUS. Are there particular products within Chapter 64 that would be most impacted by tariffs on Brazilian goods?

MS. HUGHES: Well, like I said in my testimony, most of the imports that we get from Brazil are leather footwear. However, anything that comes from Brazil, we would expect and ask for that additional tariff not be placed.

MS. OTTING: Hi. My question is for Mr. Matos, Mr. Pimenta, and Mr. Murray. Can you comment on the number of U.S. value-added manufacturers that currently use Brazilian bulk instant coffee as part of their U.S. production of coffee products and elaborate on the economic impacts for the U.S. supply chain if the proposed tariff went into effect on bulk instant coffee?

MR. MURRAY: Well, she said the question was for all three of us. What I could talk about is from the consumption perspective rather than the manufacturers themselves. Instant coffee, as instant coffee is consumed by 11 percent of the country, if we consider that there are 270 million American adults, these are companies supplying roughly 30 million consumers across the country. With respect to cold brew, 20 percent of the country is drinking cold brew and RTD. I do not have the number of manufacturers for a permitted follow-up. I can send this to you, but I cannot tell you off the top of my head.

MR. PIMENTA: Thanks for the question. Trying to complement Bill a little bit. I think it's important to have in a manufacturing perspective, the whole chain will be impacted with the 20 percent tariff if it goes on. So the thing is, you don't have any other sources that can comply with the scale needed to supply 11 percent of Americans that drink coffee

instant coffee daily. That's the main thing. So you're having problems in terms of production in Mexico, Colombia, also in the southeast of Asia. So Brazil is a primary supplier of this staple good for a daily-based product that is consumed in the U.S. In manufacturing terms, this is the main effect of the tariff that will be. That's the main thing.

MR. MATOS: Thank you very much. Very good question. The approach that we'd like to highlight is instant coffee. It's almost a commodity for U.S. industry. They need instant coffee to other industry processes, to produce ready-to-drink cold brew. That adds value a lot.

So as a leading supplier, a reliable partner, I think we can add value for the U.S. industry and for a price-sensitive population, as Bill and Pimenta explained already. Thank you very much.

MR. PIMENTA: Just one minute. I think it's important, as Marco said, not only instant

coffee itself, but the whole chain, as we mentioned, ready-to-drink beverages and also cold brew, coffee syrups, all that will be impacted, of course, not only in one company itself, but several distributors and other small companies that supply this kind of business. Thank you.

MS. OTTING: Thank you.

MS. CARSON: Okay. Thank you. My name is Tracy Carson. I'm with the Department of Health and Human Services. My question is for Mr. Messas and Ms. Chaves. So could you further discuss whether there are alternative non-Brazilian or U.S. sources of organic honey and the possibility for new U.S. investment in domestic organic honey production? Thank you.

MR. MESSAS: Thank you for your question. I guess the main point here is to understand that the conventional honey is totally different compared to the organic honey because we have to follow all the rules that NOP program ask for it. So when we look into these

rules, we are not allowed to use, like, antibiotics or any medication on our beehives. And most of the countries has to do it.

In Brazil, we don't use because we have like a mix, a natural mix that came like 100 years ago between European bees and also African bees. And in Brazil, we have this Africanized bees. This specific bees has a resistance for disease and everything, so we don't have to feed them with medications or antibiotic.

And, also, even if older countries or even America has this Africanized bees, you have to have the forage field. So Brazil is known worldwide for the rainforest, for the native forest that we have, and also a lot of flower types that we have in Brazil. Specific in the north and northeast in Brazil, we have some states that we don't have agriculture process there, so we don't have corn fields, coffee fields, soy fields there. It is because we have a specific native forest called Cerrado in Caatinga. It's almost a desert. And in this

specific region in Brazil, you can get areas far away from any potential contamination spot. So we are talking about bees, so you cannot control the bees. So you have to put the epi areas like 3.5 kilometers away from any contamination spot to guarantee that the bee will fly and collect pollen and nectar from a source without contamination.

So it's a mix between the right bees and also the right forage field that we have in Brazil. So this is why it's so difficult to replicate it in other country or even in America.

MS. CHAVES: Yes. And just the Africanized bees are very resistant, so they are very aggressive. And the U.S. doesn't allow Africanized bee to be imported in here because the beekeeping, the whole beekeeping industry would have to change. They are extremely aggressive and it would be a completely transformation in the industry.

And like I mentioned on my testimony,

the production of honey in the U.S. has declining, the non-organic honey. So it's not a matter of protecting an industry that could develop here or we could source from other sources. It's the organic honey is a niche product that is growing. The American consumers are interested in this and needing more because it's a very clean and safe product. And the U.S. cannot produce and the non-organic honey is declining.

So the U.S. should focus on taking care of their bees because the population of bees is at harm, dangerous in this country. So and honey is an excellent sugar, so a sweetener.

MR. MESSAS: Can I add like a quick comment about it? When we are talking about the organic production, you have to follow the NOP program cycle, and this process takes around 12 to 24 months to get it done and the beekeeper pass to produce organic honey. So even if they have like the native forest, the Africanized bees and everything, they have to pass through

this process that takes 12 to 24 months, so you cannot replace the source very quickly. Thank you.

MR. BUTLER: Okay. I think that's it. Thank you very much to this panel for your testimony. We are going to take a break now for lunch, so why don't we reconvene at 1:30. Just a reminder, if you are on panel four, you will need to go through security again. So it'll take a little bit extra time, so make sure you allow for that. All right.

(Whereupon, the above-entitled matter went off the record at 12:30 p.m. and resumed at 1:30 p.m.)

MR. BUTLER: Okay, thank you. Welcome back, everyone. We are going to start with Panel 4.

MR. BURCH: Is Mr. Figueiredo in the audience?

MR. BUTLER: He hasn't shown up, Tyrell. He hasn't shown up. Okay, so we will start with Panel 4. Welcome back. We are going

to start with Ms. Rosales.

MS. ROSALES: Test, test. Toughest panel of the day, after lunch, but thank you for the opportunity to testify today on behalf of the American Chamber of Commerce for Brazil. My name is Kristina Rosales, and I represent AmCham Brazil in the United States.

AmCham Brazil is the largest American chamber of commerce outside of the United States, bringing together nearly 3,500 American and Brazilian companies that account for approximately one third of Brazil's GDP. For more than a century AmCham Brazil has worked to deepen trade, investment, and commercial cooperation between our two countries.

AmCham Brazil recognizes the importance of protecting intellectual property rights, promoting fair trade, enhancing regulatory frameworks, combating corruption, and combating illegal deforestation. These objectives are shared by the United States, and by Brazilian business communities that have long been part of

the bilateral economic dialogue.

We believe that additional tariffs are unlikely to effectively advance these objectives, and may inadvertently undermine important U.S. economic and strategic interests. They risk increasing costs for U.S. manufacturers and consumers, weakening supply chain resilience, reducing competitiveness of U.S. industries.

And undermining broader U.S. strategic objectives in the Western Hemisphere while offering limited effectiveness in addressing many of the concerns identified in the 301 investigation. Our purpose today is to highlight these potential implications, while also identifying opportunities for constructive U.S. Brazil engagement.

First I would like to address the potential impact on U.S. manufacturers and supply chains. The United States and Brazil maintain one of the most significant and complementary economic relationships in the

Western Hemisphere.

Generating more than 100 billion dollars annually in trade in goods and services, and supporting approximately 400 billion dollars in bilateral investment stock. Most products imported from Brazil are not finished consumer goods.

They are industrial inputs and intermediate goods such as chemicals, metals, minerals, energy products, and machine components that support American production, competitiveness, and value creation. These products are integrated into the U.S. supply chains serving sectors such as aerospace, energy, transportation, chemicals, food processing, and advanced manufacturing.

If additional tariffs on Brazilian exports move forward, American manufacturers will face higher production costs, additional supply chain pressures, and reduced competitiveness with consequences that will ultimately affect the American workers and

American consumers.

This is particularly significant because according to U.S. Census database, roughly one third of bilateral trade between the U.S. and Brazil takes place within companies that belong to the same corporate group. Second, we encourage careful consideration of how additional tariffs may influence sourcing decisions and broader U.S. supply chain objectives.

Our analysis of U.S. ITC data shows that China already exports close to 92 percent of the Brazilian product categories that could become subject to additional U.S. tariffs, and is the U.S. leading supplier in more than half of those categories.

When ASEAN countries are considered alongside China, they are leading suppliers of close to 84 percent of those categories. As companies adjust sourcing decisions, additional tariffs could unintentionally promote a shift towards suppliers that already accounts for a

significant share of the U.S. trade deficit, while reducing sourcing from our reliable partners such as Brazil.

Third, we encourage consideration of the broader implications for U.S. economic engagement in Brazil. The United States share of Brazil's total trade fell to close to 12 percent during the first five months of 2026, its lowest level on record.

This trend suggests that additional tariffs could further erode the U.S. commercial presence and economic influence in one of the world's largest emerging markets, creating opportunities for foreign competitors to expand their market share at the expense of American firms.

Finally, we believe there is a significant opportunity to continue advancing U.S. priorities through engagement between our two governments. The United States and Brazil have significant opportunities to deepen cooperation in today's geopolitical environment,

generating tangible benefits for both economies.

Broad tariffs would weaken the cooperation, and reduce opportunities for deeper bilateral integration. Thank you very much, and I look forward to your questions.

MR. BUTLER: Thank you. Mr. Poole, you have five --

MR. POOLE: Can you hear me?

MR. BUTLER: Yes, you have five minutes.

MR. POOLE: Okay. To the members of the panel, my name is James Poole, I am the founder and chief executive officer of Obelisk Tech Systems Inc., a defense contracting small business that specializes in cyber security. Section 301 reaches foreign acts, policies, and practices that are unreasonable or discriminatory, and that burden or restrict United States commerce.

Where a practice is unjustifiable and burdens United States Commerce, the Trade Representative shall take action. Where a

practice is unreasonable or discriminatory and burdens United States commerce, it is actionable. Brazil's practices are not isolated disputes, they constitute a persistent pattern of conduct.

Brazil's forced labor import gap is actionable. Brazil's illegal deforestation cost suppression is actionable. Brazil's circumvention pathways are actionable. Brazil's anti-corruption, under-enforcement of it is actionable. Brazil's digital payment discrimination is actionable.

Brazil's non-reciprocal market access is actionable. Brazil's preferential tariff structures are actionable. Brazil's intellectual property, under-enforcement of that is actionable. Brazil's ethanol market barriers are actionable. Brazil's enforcement failures that burden United States commerce are all actionable.

Together they constitute an egregious, persistent pattern of unreasonable and

discriminatory conduct that burdens United States commerce. Goods mined, produced, or manufactured wholly or in part with forced labor shall not be entitled to entry, the importation thereof is prohibited.

A rebuttal presumption applies, the burden shifts. Clear and convincing evidence is required, assertions do not satisfy that burden under GAGAS inspector general standards of the Yellow Book and the Green Book. Certifications do not satisfy that burden. Goods deemed prohibited under Section 307 remain prohibited when routed through third countries.

Transshipment does not change origins. Circumvention does not clear illegality. Origin laundering does not create lawful entry. Recovered merchandise entered through a materially false statement or a material omission constitutes evasion. Minor finishing is not substantial transformation.

Relabeling does not change country of origin, Mexico and India are corridor

jurisdictions, the record warrants further investigation. Section 302 authorizes initiation of new investigations, and any interested person, including myself, may petition for action under Section 301.

The Trade Representative shall determine whether to initiate an investigation or not. Brazil's own representative acknowledged preferential trade relationships during this hearing involving Mexico and India, that is why Mexico and India should be treated separately as Section 302 investigation targets.

Not as conclusions, but as corridor jurisdictions requiring examination of preferential access, grounding, origin claims, and circumvention risks. Separately, initiate those Section 302 investigations into Mexico and India. Beneficial ownership concealment and enforcement under-performance are unreasonable or discriminatory, and burden or restrict United States Commerce.

Obtain entry grounding ownership origin

and enforcement records. Condition relief on proof, condition reduced rates on proof, condition exclusions on proof up to the inspector general's audit standards, the GAGAS. Refer evidence to agencies possessing applicable enforcement authority where statutory criteria are satisfied.

Obtain entry routing origin records. Evaluate transshipment, evaluate circumvention, evaluate origin laundering, export targeting is unreasonable. Toleration of systematic anti-competitive activities is unreasonable. Failure to effectively enforce labor protections is unreasonable.

Permitting forced or compulsory labor is unreasonable. Denial of fair and equitable protection of intellectual property rights is unreasonable. A foreign country includes a foreign instrumentality, beneficial ownership, suspicious activity, trade based money laundering identifies the network.

False labeling and false records

constitute independent enforcement predicates. Knowingly presenting a false or fraudulent claim carries trouble damages under the False Claims Act. Thank you, now I'm done.

MR. BUTLER: Thank you. Ms. McKinney, please?

MS. MCKINNEY: Distinguished members of the panel, I am Anne McKinney, vice president for the Americas at the U.S. Chamber of Commerce. The Chamber appreciates the opportunity to testify concerning proposed action pursuant to the Section 301 investigation of Brazil. Brazil is an important market for a broad range of U.S. companies of every size, sector, and state.

Bilateral trade in goods and services last year reached 134.1 billion dollars. Today I will outline our preferred approach to addressing and resolving commercial concerns as detailed in our formal submission. Brazil maintains a range of tariff and non-tariff barriers that limit the ability of U.S.

companies to compete fairly.

The goal of the Section 301 investigation should be to secure concrete reforms through bilateral engagement with Brazil, rather than impose tariffs that harm the U.S. economy. The Chamber is concerned that the proposed 25 percent tariff action would have unintended consequences, and undermine efforts to resolve the legitimate commercial concerns at the heart of this investigation.

Should USTR proceed with the proposed tariff action, the Chamber urges that USTR adopt a clear policy against tariff stacking across all active Section 301 investigations, in addition to the proposed exclusion of products subject to Section 232 investigations. Brazil is a crucial supplier across multiple strategic sectors.

To protect critical supply chains, any tariff action should exclude raw materials, inputs, and equipment for which no adequate domestic supply or alternative foreign source

exists. Broad tariff action risks raising input costs, eroding manufacturing competitiveness, and displacing the American jobs and industries that the action seeks to protect.

The Chamber welcomes USTR's proposal to exclude certain products, and urges that this approach be extended to other critical agricultural inputs, and industrial goods where the same supply chain concerns exist. We urge the administration to pursue evidence based negotiated solutions that address priority concerns identified in our submissions.

Regarding digital trade and content moderation, U.S. companies are increasingly subject to Brazilian judicial orders that appear to exceed the country's jurisdiction, requiring the global removal of content, including in the United States. Such extraterritorial measures risk infringing on the rights of U.S. companies and users.

Judicial orders should be limited to content within Brazil's sovereign territory. In

terms of electronic payment services, the core concern is the Central Bank of Brazil's dual role as both regulator and operator. We encourage U.S. engagement to focus on the central bank's governance framework.

PIX should operate under the same regulatory and operational standards as private sector providers, and be subject to independent oversight. A clear separation between the central bank's operational and supervisory rules is critical to promoting regulatory neutrality, and mitigating conflicts of interest.

It is worth emphasizing that U.S. firms partner with PIX, and consider its continued success important for expanding financial inclusion and digital access in Brazil. In addition, the Chamber encourages USTR to leverage ongoing engagement with Brazil to address other digital trade measures beyond the scope of this investigation.

Including ongoing concerns related to platform liability, content ratings, and data

center obligations, as well as proposed legislation on XNT competition regulation, artificial intelligence, video on demand, local content requirements, network usage fees, and digital services taxes that unfairly target U.S. companies.

Regarding ethanol, Brazil's 18 percent tariff on U.S. ethanol, as well as non-tariff barriers and restricted access to RenovaBio and RenovaCalc creates significant imbalance between the world's two largest ethanol producers. USTR should press Brazil to remove the tariff and reform these programs to allow mutual recognition of environmental standards, including EPA's aggregate compliance approach.

In terms of the important issue of IP Protection, the U.S. should work with Brazil to address IP related concerns, including patent term uncertainty, regulatory data protection, and restrictive copyright policies. In conclusion, the U.S. Chamber stands ready to support both governments to pursue a

constructive path forward that addresses the longstanding barriers.

As well as the broader recommendations we have identified in our formal submission. Thank you again for the opportunity to testify, and I look forward to your comments or questions. Thank you.

MR. BUTLER: Thank you. Mr. Mozzi?

MR. MOZZI: Good afternoon. Dear members of the Committee, my name is Stefano Mozzi, and I serve as chief executive officer of Bauducco International. I appreciate the opportunity to submit this testimony, and commend the Office of the United States Trade Representative for its continued commitment to address unfair trade practices, and promote fair, rule based trade.

I understand that there are important issues surrounding the trade between U.S. and Brazil that need to be worked out, and that the Section 301 investigation is part of this process. I am here today to present a narrow

and practical request.

That while these larger macro issues are being worked out between the U.S. and Brazil, that USTR also provide a way for companies like my own who are using the proceeds of trade with the U.S. to invest in U.S. manufacturing, operations to obtain target time limited tariff relief.

In Bauducco's case, time limited relief, this is critical to supporting Bauducco's ongoing and substantial investment in the U.S. manufacturing. Bauducco has operated in the United States for more than 20 years, we are not simply an importer, we are an active investor in American production.

Today we employ approximately 150 people in Florida, we are currently constructing a 200 million dollar manufacturing facility in Pasco County that will create more than 600 American jobs. This project is well under way, with phase one completed, and opening last week, with a hiring initiative and new equipment being

installed.

Our objective is clear, to produce in the United States, and increase the share of the products we sell to American consumers. The products covered by our request for limited relief are limited to a small number of categories of consumer bakery goods, panettone toast, Choco Biscuit, and Maria cookies.

These products have no connection to the policies concerned underlying this investigation, including digital trade participation payment systems or deforestation-related measures. However, the application of tariffs on these products has significant and immediate consequences, not in Brazil, but in the United States.

At present, these imports serve specifically a transitional role in our business model, they are not substitute for domestic manufacturing, rather they function as a bridge to support our expansion on U.S. based production.

During the building, which our Florida facility is being completed on scale, imports allow us to maintain supply, support our retail partners, and generate revenue necessary to finance our capital investment. That revenue is being directly reinvested into construction, equipment, and job creation in the United States.

Tariffs on these products are already cost Bauducco tens of millions of dollars annually, capital that would otherwise be deployed to our U.S. manufacturing operation. Because we operate in a highly price sensitive market, we are unable to fully pass these increased costs on customers.

The result is reduced investment, slower expansion, and delayed hiring in the United States. There are no practical domestic substitutes for these products at the required scale or consistency. Alternative foreign sources are limited.

Accordingly, the tariff does not

incentivize a shifting source in our production, instead they increased costs, constrain supply, and disrupt U.S. retailers and consumers. Moreover, there is no meaningful nexus between the bakery goods and the conduct of issues in this investigation.

Imposing a tariff on such goods will no influence Brazil's policy, it will however impose an unintended cost on American workers, American investment, and American households, because this tariff will limit Bauducco's ability to invest in the U.S.

For this reason we respectfully request that USTR consider our time limited, narrow tariff relief, where it can be established that those tariff revenues will otherwise support direct investment in the U.S., especially for manufacturing.

This is a case where granting limited tariff relief would directly advance U.S. policy objectives instead of displacing American manufacturing, they are enabling it. Bauducco

has made a long term commitment to the United States, we are building, hiring, and growing here.

A tariff exclusion would allow us to fulfill that commitment more quickly and in greater scale, supply U.S. jobs, domestic manufacturing, and consumer access. Thank you for your consideration on this request.

MR. BUTLER: Thank you. Ms. Bickett?

MS. BICKETT: Good afternoon, and thank you for the opportunity to testify. My name is Jody Bickett, and I represent Wholesome Sweeteners. We supply organic sweeteners to retailers, food manufacturers, and families across the United States.

Our brand leads the U.S. in certified organic, fair trade sweeteners, including sugar, honey, agave, molasses, allulose, and other natural sweeteners. I am going to talk mainly on sugar today, but I just wanted to say that I agree with everything that Mr. Messas and Ms. Chaves said on Panel 3 with regards to organic

honey, Wholesome also imports all of its organic honey from Brazil.

I started with Wholesome in 2007 as the customer service manager, and I am currently the vice president of ingredients, food service, and customer service. I want to start by saying that we share the administration's goal in this investigation, addressing unfair trade practices, and ensuring a level playing field for American businesses is important, and necessary policy.

But in the case of organic sugar, these proposed tariffs would work directly counter to that objective. Organic sugar is different than the broader sugar market. The United States does not produce enough organic sugar to meet demand.

Wholesome does not import as a matter of preference, we import because we have no alternative. We would prefer to source our organic sugar domestically, but we cannot. No meaningful domestic supply exists, and there is

no immediate pathway to create one.

Transitioning the land to organic takes years, it is cost prohibitive, and existing producers cannot scale fast enough to meet demand, yet alone future growth. We therefore support adding organic sugar to Annex A. But to give you some perspective on the organic sugar market, it is really small.

We are less than one percent of the U.S. caloric sweetener consumption, and less than two percent of total cane and beet sugar in the U.S. market. Organic sugar has no impact on the wider U.S. sugar market and pricing dynamics of it, we do not compete with U.S. refined sugar.

Due to limited domestic supply, we are forced to import. Brazilian organic sugar imports do not unfairly disadvantage U.S. sugar farmers. We have worked with our USDA organic fair trade, and regenerative, certified Brazilian suppliers for decades to ensure that they use environmentally sound production

methods to produce a premium organic product that we simply cannot source domestically.

There are 350 to 400 sugar mills in Brazil. Out of those, four of them product organic sugar. It is expensive to produce organic sugar, and that is the investment in quality, the cost of the organic farming in production along with the certification requirements are significant.

In summary, the cost of imported, organic, direct consumption sugar is already way above domestic pricing, which is why we historically had the specialty quota to offset this cost burden. When the USDA eliminated the specialty TRQ last year, organic prices rose sharply.

Those cost increases move through the supply chain, higher prices on grocery store shelves cause consumers to pull back, in some cases they walked away from organic sugar all together, rather than absorb a 20 to 30 percent price increase. Our market data shows that

those consumers did not switch to conventional sugar instead, they just bought fewer organic products.

We are not competing with U.S. refined sugar. If the administration imposes tariffs on organic sugar, sourcing will not shift to the United States, because there is no domestic supply to replace imports. Instead, tariffs will raise costs for American companies, limit access to essential ingredients, and increase prices for American consumers.

Organic sugar is not optional for organic products. USDA organic standards require it, and manufacturers cannot substitute non-organic alternatives. Tariffs would also harm other U.S. sourced organic products like dairy, wheat, peanuts, as well as the manufacturers that rely on them.

In my job, I sell to U.S. manufacturers from small businesses to large companies all across this country, and they are facing a difficult reality. They have built successful

businesses by giving consumers a product that they want in a difficult retail landscape.

Now they are caught between rising costs and declining demand that follows. Imposing additional 301 tariffs will force jobs out of the U.S., these tariffs are hurting American businesses that do not have the option to source American organic sugar.

We do support reasonable targeted safeguards that ensure integrity and prevent misuse. As we outlined in our written comments, measures like requiring food grade packaging, or affidavits of authenticity are worth considering, but broad tariffs on organic sugar are not the right tool for this market.

Americans increasingly want organic products, American companies are working hard to meet that demand, and the domestic organic sugar supply cannot support it. Until that changes, imports are not a threat to U.S. producers, they are a necessity.

We do not compete with U.S. refined

sugar, we support American businesses, and the American consumer. Thank you for your time, I welcome any questions.

MR. BUTLER: Thank you. We'll turn to questions now. I would ask that you please state your name and your agency when you're asking your question, since we have new people up here. Thank you.

MR. REYNOLDS: Hello. This is Tobias Reynolds, Department of Commerce, International Trade Administration. This question is for Ms. Rosales. You suggest that additional tariffs will increase costs for U.S. manufacturers and supply chains, are there raw materials that you have concerns with that were not proposed for exemption?

MS. ROSALES: Thank you for that question. In general our message is that the focus of the impact obviously is going to be on the American consumer, on the American companies, on the American economy. Some of the entities, and some of the products and verticals

that I mentioned did cover chemicals, metals, minerals, energy transportation equipment, aerospace equipment, and also advanced manufacturing equipment.

In general what we are defending as part of our testimony is that we encourage USTR to examine this investigation at the product level, and identify that not all products should be necessarily packaged together, and obviously applied a unilateral tariff. Many of the issues highlighted by the investigation can be addressed at the bilateral front, from a bilateral negotiation perspective.

In which we could, at the table from government to government, with the support of the private sector, with the support of our entity, AmCham Brazil, can receive measurable commitments and time lines to address those issues.

MR. REYNOLDS: Thank you.

MS. PASTER: Hi, this is Megan Paster from USTR, this question is for Mr. Poole.

Could you please elaborate on the suggestion from your request to appear that the proposed 25 percent tariff should be structured so pressure falls on the offending acts, policies, and practices, rather than on U.S. downstream users?

Do you mean on Brazil products directly benefitting from Brazil's acts, policies, and practices? Thank you.

MR. POOLE: What I mean is that the determination for forced labor for Brazil, there should not be carve outs for that, because number one, it incentivizes them to continue, and they need forced labor to be legible. A government has to have something to be legible in a report that's transparent.

And if we really do need Brazil this bad for things like coffee, for things like honey, it's a dependency risk, and a national security risk as well. I think that it's actually a huge risk if we're not diversified with other countries on something like coffee, on beef.

I saw the rise of the cost of beef go through the roof, and I don't see a shortage of gelatin in those products when I go to Walmart, but I have seen tons of farms closed down nearby, and I have seen farmers struggle, and I am in South Georgia.

And so those, I will give you another example, is when my own mother tried to sell timber, and I believe there is somebody on the panel from the USDA, because it was under 40 acres, and even if it was 41 acres, the distortion and burden on commerce for the wood, and timber, because they are cutting down -- somebody on the panel said it's an enormous amount of football fields.

We are unable to even sell the timber, 30 acres, 40 acres minimum to even turn a profit because of the distortion, and the suppression on prices of wood. So, does that answer your question?

MS. PASTER: Yes, very helpful, thank you for your response.

MR. WESCH: Ms. McKinney, good afternoon, my name is Ricky Wesch, I'm with the State Department. In your testimony you said that the proposed 25 percent tariff is too high, and might undermine efforts to resolve the legitimate concerns at the heart of this investigation. What do you think would be appropriate?

And why would it be sufficient to encourage Brazil to eliminate its unreasonable acts, policies, and practices?

MS. MCKINNEY: Thank you for your question. In general, our preferred approach is bilateral engagement, we are opposed to tariffs, whether they are 25 percent, or set at a lower level, because we don't believe that they are the best approach to resolving the underlying issues, and could harm U.S. manufacturing, competitiveness, and supply chains.

As well as increase costs for consumers, and undermine efforts to achieve a durable solution to the legitimate concerns.

MR. WESCH: Thank you.

MR. HUBLER: This question is for Mr. Mozzi. You note the alternative foreign sources are limited for the bakery products for which you request an exemption for, could you please elaborate which products would not be available from domestic, or non-Brazilian sources? Thank you.

MR. MOZZI: Yes, and thank you for the question. Actually the categories that I am requesting that are industrialized are coming from abroad, are coming from Europe or Latin America, so there isn't actually production facilities that are able to do the volume that is needed in the market.

Our request is simple relief for a period of two years so we have enough time to be able to commit to buy the machinery, install it, and produce here in the U.S.

MR. HICKS: Randal Hicks from Department of Labor, this question is for Ms. Bickett. If a 25 percent tariff were imposed on

Brazilian organic sugar, would you expect a corresponding increase in the global price of organic sugar, or would the price response there differ?

MS. BICKETT: I think there would be a price increase. When we look at our imports tracker, the Brazilian sugar coming into the United States, the organic sugar is currently mid 40s, right? But I think that is distorted, I think the amount of organic sugar coming into the U.S. is actually closer to 60 percent on a direct consumption basis.

Because you have got countries that are bringing in sugar that is then further refined. And what you'll see is that if -- well what we saw when the tariffs were instituted on the Brazilian sugar, when it was 50 percent earlier this year, the other countries just raise their prices.

And so you don't see a decrease, you're just seeing an overall increase. And Brazil is such a large part of the market, I mean they

have four mills, three main mills, they are really the level A as far as quality is concerned. There is very few other mills that Wholesome would support.

MR. BUTLER: Okay, thank you to this panel, thank you for your testimony. We are going to take a quick break, and come back with Panel 5.

(Whereupon, the above-entitled matter went off the record at 2:10 p.m. and resumed at 2:16 p.m.)

MR. BUTLER: Afternoon. Okay, we are going to start with Panel 5. Mr. Penner, you have the floor.

MR. PENNER: Good afternoon, members of the Section 301 Committee, and thank you for the opportunity to testify. My name is Arlen Penner, and I am the owner and CEO of Prairie Imports LLC, a middle market business located in Hillsboro, Kansas. We import and supply certified organic honey from Brazil to U.S. packing companies nationwide.

We respectfully request that Brazilian organic honey be exempted from any additional duties under the proposed Section 301 action. I have worked in the U.S. honey industry for over 31 years, and have been a beekeeper for over 20 years. I deeply respect the hard work of domestic producers.

However, it is biologically and geographically impossible to produce certified organic honey at scale in the United States. U.S. commercial beekeeping relies on European honey bees, which are highly susceptible to parasitic varroa mites, and require chemical treatments.

Conversely, Brazil utilizes Africanized bees, while they are highly aggressive, these bees are naturally immune to varroa mites and other diseases, and allows for completely chemical-free beekeeping. Strict USDA organic certification requires vast forage areas free from chemical pesticides.

Due to extensive U.S. commercial

agriculture, finding compliant organic forage domestically is nearly impossible. Brazil offers the vast, isolated, and organic compliant landscapes required to meet this standard. Brazilian organic honey occupies a specialized niche segment of the U.S. market.

Reliable global supply is strictly limited, and Brazilian producers are among the few capable of meeting the volume, quality, and traceability standards required by U.S. food manufacturers and retailers. Applying additional tariffs to this product will not advance the objectives of this investigation.

Instead, it will cause unintended harm. This specialized product cannot be readily replaced by domestic or alternative foreign supply. The honey industry operates on razor thin margins, importers and packers simply cannot absorb the high tariffs. As we observed this last year, these added costs are passed directly to American consumers, who demand organic choices.

An exemption for Brazilian organic honey aligns perfectly with the Committee's guidelines to exclude products that are difficult to source elsewhere, or whose inclusion would cause disproportionate supply chain disruptions. Because organic honey is a narrowly defined agricultural product with its own exclusive HTS code, 0409.00.0005, this exemption can be easily and precisely administered without affecting other segments of the honey market.

To protect U.S. small businesses, preserve consumer access to healthy alternatives, and avoid unnecessary supply chain strains, we respectfully urge the Committee to exclude certified organic honey under HTS code 0409.00.0005 of Brazilian origin from the final Section 301 tariff action.

Thank you for your time and consideration, and I welcome any questions you may have.

MR. BUTLER: Thank you. Mr.

Sargeantson?

MR. SARGEANTSON: Good afternoon, and thank you for the opportunity to testify on behalf of Sunland Trading, and the organic honey supply chain. My name is Andy Sargeantson, and I am the second generation owner of Sunland Trading, the largest and oldest U.S. importer of raw honey.

For the last 50 years our business has annually supplied jobs for hundreds of working class Americans across ports and communities in the United States, including longshoremen, customs brokers, truckers, and warehouse workers along our supply chain. As I will explain, organic honey does not contribute to the decline in U.S. honey production.

It does not undermine U.S. beekeepers, and plays an important role in meeting U.S. consumer demand for natural sweeteners. For some background, I am a past president of the National Honey Packers and Dealers Association, and a past board member of the National Honey

Board, an industry funded federal research and promotion group operating under the USDA.

I care deeply about the growth of honey consumption in the United States, whether supplied by U.S. producers, or responsibly sourced imports. Working alongside U.S. beekeepers on the National Honey Board, we have helped grow honey consumption in the United States.

U.S. consumers now eat about 1.8 pounds of honey per capita, up from 1.2 pounds in 2009. And total honey consumption is estimated at 655 million pounds in 2025, up 24 percent from 530 million pounds 10 years ago. A significant driver of this growth is that consumers have chosen natural sweeteners like honey instead of processed sugars and other alternatives.

And organic honey has become an important part of that choice. In this same period of rising demand, U.S. honey production has declined steadily. Domestic production fell from about 220 million pounds in 2000 to 170

million in 2010, 148 million in 2020, and just 116 million pounds in 2025.

According to the USDA's economic research service, this decline is largely due to a shift towards pollination services, and persistent challenges in bee health, not import competition or low prices. Beekeepers are paid by large growers of commercial crops such as almonds to move hives into growing areas for pollination, which is profitable, but weakens bees, and reduces honey yields.

Over the last decade, the average honey price paid to U.S. beekeepers increased from about 2.08 a pound to about 3.08 per pound, a rise of 48 percent. So, domestic production is not falling because honey prices are too low. Nor is domestic production falling because of Brazilian organic honey imports.

The economic incentive to produce honey is present, but producers are choosing pollination income, or facing biological limits from bee health. Imported honey is essential to

meeting U.S. demand, given the gap between production of 116 million pounds, and consumption of 655 million pounds.

Organic honey is a relatively small segment in volume terms, about 90 million pounds today, but it is critical to consumers who seek certified organic, traceable, natural sweeteners. These consumers generally do not substitute conventional honey when organic prices rise sharply.

Instead, they reduce consumption or leave the category. Recent tariffs have already had a significant impact, total honey consumption declined in 2025 by about five percent, and our projected organic honey sales, and this is for Sunland, are down roughly 20 percent in 2026 versus 2025.

Additional tariffs on Brazilian organic honey will intensify these declines, while providing no realistic opportunity to replace that volume with U.S. produced honey, because domestic supply is constrained by pollination

economics and bee health, not by price.

I have seen the organic honey market segment grow from nothing 13 years ago, to approximately 90 million pounds today. The recent losses in organic honey consumption due to tariffs are real, and we respectfully ask that certified organic honey is excluded from this action. Thank you.

MR. BUTLER: Thank you. Mr. Carle?

MR. CARLE: Members of the Section 301 Committee, thank you for this opportunity to participate in the hearing. My name is Michael Carle, and I am the CEO of Sweet Harvest Foods. Sweet Harvest is an American company headquartered in Lakeville, Minnesota.

We are the largest beekeeper in the United States, operating roughly 100000 colonies that pollinate American crops, and make approximately 6 million pounds of American honey. Our company is the proud maker of Nature Nate's, it's this orange bottle, the brand leading the growth of honey consumption in the

U.S.

We are also one of the largest packers in the country. As a packer, we are the link between the beekeeper and the family kitchen. We source raw honey, test it, bottle it, and supply both retail consumers and American food manufacturers. As you have heard from others on this panel, and prior panels, there are major challenges associated with producing organic honey in the United States.

Bee genetics, the varroa mite, forage availability just to name a few. As the largest U.S. beekeeper, we can confirm that each of these presents insurmountable challenges for producing organic honey in the U.S. If a commercially viable domestic organic supply could be built, we would build it, we cannot.

To keep hives healthy, our bees must be treated with miticides and antibiotics among other products to prevent an acceleration of colony losses from already elevated levels that we have seen for the last 20 years. Simply put,

rebuilding 50 percent of the colonies in the U.S. puts tremendous economic pressure on American beekeepers.

Separately, organic standards require a pesticide free forage that does not exist here in the U.S. Bees fly for miles, and recognize no fences, and there isn't enough land in the country large enough, or clean enough to qualify at commercial scale. As the U.S. honey producer who would benefit most if it were otherwise, I am telling you there is no commercially viable organic honey made in the United States.

Imports, in this case Brazil, are not a loophole, they are the only commercially available supply of scale. And this is not a niche we can grow into. Americans consume approximately 90 million pounds of organic honey a year, nearly equal to all of the honey of any kind that every U.S. beekeeper produces annually combined.

About 25 million pounds reach families as honey on a retail shelf. The other 65

million pounds goes into products made by American companies, I have brought some as a sample here on the table. Every one is labeled organic, and features honey to meet real consumer demand, and not one can switch to conventional honey or another sweetener without losing its certification, or the promise of the product.

There is no trading down. That brings me to my second point, the one only our company can speak to with data. When the IEEPA tariffs of Brazil reached shelves earlier this year, the price of organic honey rose about 11 percent, and the volume Americans bought fell 16 percent, the first decline after years of growth.

The steepest drop was in the lowest priced private label. Many of these shoppers did not switch to conventional honey, they left the category all together. Our shopper panel data explains why, and it may be the opposite of what you might assume. The families we lost are not casual organic buyers, they are our most

committed ones.

60 percent more likely than the average shopper to call themselves deeply committed to organic, and about 50 percent more likely to pay premium for it. For them, organic is not a preference to be talked out of, it is a line they will not cross because they view it as better for you products.

So, when the price rises and there is no American organic honey to switch to, they don't buy conventional, they go without. And the households we lose are disproportionately younger, more diverse, and raising children, the very families we say we want buying healthier foods.

Most fundamentally this investigation concerns Brazil's conduct on digital trade, intellectual property, ethanol, and deforestation, organic honey has nothing to do with any of those issues. A tariff on the honey will not change one of those practices, it cannot protect a domestic organic industry

because one does not exist.

It will only raise prices on American families, and the companies that rely on this better for you natural food. We respectfully ask that certified organic honey, HTS code 0409.00.0005 be excluded from this action. There is much to lose for American families and industry, and nothing to gain for American beekeepers. Thank you, and I welcome your questions.

MR. BUTLER: Thank you. Mr. Hagen?

MR. HAGEN: Yes, good afternoon. Thank you for the opportunity to testify today. My name is Clint Hagen, and I am the president of the American Sugarbeet Growers Association, and I live in Ubly, Michigan, where I farm with my family.

I am here on behalf of the American Sugarbeet Growers Association, and the U.S. Beet Sugar Association representing 10000 family farmers, and 7 farmer owned cooperatives that produce beet sugar across 11 states. Today I

will focus on the 301 remedies the U.S. sugar industry needs to survive.

The proposed remedy in this investigation falls short of counteracting the burden faced by the U.S. sugar industry. The Committee should continue to include out of quota tier two sugar imports within the proposed remedies, and it should address out of quota sugar tariffs on a global scale, though through a sugar specific Section 301 investigation.

Notably, 112 bipartisan members of Congress agree with the requested remedy that I am here asking for today. In a letter that was sent on May 20th of this year, 22 senators and 90 House members expressed to Ambassador Greer, and Secretary Rollins, and key White House staff that unfair foreign sugar trade practices are harming the domestic sugar industry.

And urged the administration to take appropriate action under Section 301 to protect American sugar producers. Tier two duty rates haven't been updated in more than 25 years, in

that time our costs have gone up dramatically. While foreign producers have expanded production and kept prices artificially low through government practices including those identified by the Section 301 Committee.

As a result, sugar imports can enter at low prices that undercut American farmers. So in closing, ASGA and USBSA are grateful that this Committee has already taken the important step of conducting several 301 investigations of acts, policies, or practices of foreign governments that burden or restrict U.S. commerce.

We now urge the Committee to adopt a remedy that is strong enough to address the burdens and restrictions faced by the U.S. sugar industry because of such acts, policies, or practices. Without a strong remedy, many farmers and factories will not be able to survive another year.

We encourage the Section 301 Committee to act quickly for the survival of our industry.

We ask the Committee to continue to include out of quota sugar within the scope of remedies, and address out of quota sugar tariffs globally through sugar specific Section 301 investigations.

Our industry is made up of family farmers like myself, union workers, and rural communities that depend on a fair marketplace, and unburdened commerce. We stand ready to work with the Committee to make sure that strong remedies encourage the elimination of unreasonable practices by foreign governments. Thank you, and I look forward to your questions.

MR. BUTLER: Thank you. Mr. Tasman, the floor is yours.

MR. TASMAN: Thank you -- can you hear me -- Section 301 Committee, for the opportunity to testify today. My name is Mark Tasman, I am the CEO of Peachtree Playthings, a U.S. based importer and distributor of certified organic cane sugar from Brazil, headquartered in Marietta, Georgia.

We strongly support the administration's efforts to hold Brazil accountable for its unfair trade practices. However, we respectfully urge the Committee to exempt Brazilian certified organic cane sugar, HTS numbers 1701.99.1015, and 5015, from the proposed 25 percent Section 301 tariff.

We believe that the criteria for exemption are clearly satisfied, and that imposing these tariffs on organic sugar would harm American businesses and consumers without meaningfully advancing the objectives of the investigation, and here is why.

It is much like what Ms. Bickett did testify to, as well as the honey producers. And first, the United States simply does not produce enough organic sugar to meet the domestic demand, less than ten percent of organic sugar that is consumed in this country is produced here.

The domestic sugar industry is overwhelmingly conventional, a 25 percent tariff

on Brazilian sugar will not redirect the demand to domestic suppliers, because those suppliers just simply don't exist at anywhere near a necessary scale. Secondly, and critically, the situation cannot be fixed quickly.

As you have heard from other testimony, it takes up to five years for a field to be certified organic so that it can produce a necessary amount of product. The sugar cane specifically and practically time line from transition to first viable use eliminates domestic supply.

Even if domestic producers committed to organic transition today, no meaningful additional supply would reach the market for at least those five years. This is not a temporary gap, it is a structural constraint that tariffs cannot resolve. Third, there are no readily available alternative foreign sources to replace Brazil.

There are producers, Paraguay, Bolivia, and elsewhere, but they simply lack the

production scale, and quality consistency, and logistical infrastructure needed to substitute for Brazilian supply at commercially reasonable prices or insufficient volumes. Fourth, tariffs on certified organic sugar would not contribute substantially to eliminating Brazil's actionable practices.

Certified organic production, by its very nature, operates under rigorous international standards that prohibit the land use, and environmental practices that this investigation identified as problematic. Penalizing organic sugar producers runs counter to the goals of sound trade and environmental policies.

Finally, the economic harm is real and immediate, a 25 percent tariff would drive up costs for wholesale distributors like Peachtree, propagating through the entire organic food supply chain, and ultimately increase prices for American consumers, and the domestic manufacturers who depend on organic ingredients.

In summary, Brazil's organic cane sugar meets every criteria the USTR has identified for exemption. Insufficient domestic supply, unavailable alternative sources, a structural barrier to expanding domestic production, and no meaningful contribution to eliminate Brazil's actionable practices.

We respectfully urge this Committee to add HTS 1701.99.1015 and 5015 to the annex of exempt products. I welcome your questions, and thank you very much for allowing me to testify today.

MR. BUTLER: Thank you. Ms. Karlin?

MR. KARLIN: Good afternoon. My name is Marni Karlin, and I am here today representing Stonyfield Organic, thank you for the opportunity to testify today. I want to quickly associate myself with Ms. Bickett's testimony from the last panel, as well as Mr. Tasman's just now.

Founded in 1983 with the goals of helping family farmers survive, and protecting

the environment, today Stonyfield is the country's leading organic yogurt producer. We employ over 400 people at our headquarters in New Hampshire, and at factories in New Hampshire, Vermont, and Arizona.

And we source all of the organic milk for our yogurt from family farms in the United States. We share the administration's goals of addressing unfair trade practices, and ensuring a level playing field for American businesses. But for organic sugar, the proposed tariffs would work directly against those objectives.

This is the focus of our comments today. Because certified organic sugar is not grown or available in sufficient quantities in the United States, and therefore cannot be supplied domestically in the near term, we urge USTR to consider the harm to U.S. businesses like us that would result from including certified organic sugar in its tariff actions, and to exclude certified organic sugar from any tariff actions.

Organic sugar is a critical ingredient for organic food manufacturers like us. We use it in our certified organic yogurt, which American consumers choose every day as part of their healthy diets. Conventional sugar, as you've heard, is not an interchangeable substitute.

When we acquire sugar, USDA regulations require that that sugar be certified organic in order for the finished product to maintain organic certification, and carry the USDA organic seal. Using organic sugar is not a preference, it is a regulatory mandate. And domestic supply of certified organic sugar does not meet demand.

USDA Economic Research Service data confirms this, ERS estimates FY '26 U.S. organic sugar demands at approximately 304925 metric tons raw value. Domestic organic production accounts for 20075 metric tons raw value, or roughly 7 percent of total supply. This imbalance has been the case for at least 20

years.

American certified organic food producers like us are forced to import organic sugar, not because we want to, but because there is no domestic supply. And that can't change overnight, as you have heard from other testifiers.

Organic transition, certification, processing, segregation, and supply chain development take time, including a regulatorily required three year transition period. For these reasons we respectfully request that USTR exclude certified organic sugar from its tariff actions.

If tariffs are imposed on organic sugar, sourcing will not shift to the United States, because there is no domestic supply to shift to. Instead, tariffs will raise costs on American businesses like us, and our customers. We have already seen what happens when the supply of organic sugar tightens.

When USDA eliminated the specialty TRQ

last year, organic sugar prices rose sharply. This cost our business about 2 million dollars annually. While Stonyfield has shouldered these increased costs, at some point they may need to be passed onto consumers. This may lead consumers to buy less certified organic yogurt, which would lead us to produce less.

And while this would reduce the amount of sugar we use, it would more meaningfully reduce the amount of certified organic milk we use, leading directly to harm to the American family farms whose milk we purchase. Over time this could also impact employment at our American factories, as less production requires fewer workers.

Increased duties on certified organic sugar will do nothing to help the domestic sugar sector, but it will harm the domestic organic dairy sector, and American consumers, businesses, and workers. This request to exclude certified organic sugar from Section 301 duties is administrable.

HTSUS provisions already distinguish, as has been noted, certified organic sugar from conventional sugar. USTR can condition exclusion on USDA organic certification, and supporting documentation, which includes already existing National Organic Program import certificates, organic certificates, and certifier audit and traceability records.

This would ensure that any exclusion serves verified organic channels, and does not create any loopholes. In closing, Stonyfield asks that USTR exclude certified organic sugar from any final tariff action, thereby avoiding unnecessary harm to verified organic supply chains, and U.S. organic manufacturers.

American consumers increasingly want organic products. American companies like us are working very hard to meet that demand, and domestic organic sugar supply just can't support it. Until that changes, imports are not a threat to U.S. producers, they are a necessity for U.S. businesses and consumers.

I thank you for your time and consideration, and the opportunity to provide these comments.

MR. BUTLER: Thank you. We will turn to questions now, the first question is from HHS.

MS. CARSON: This question is for Mr. Hagen. You indicated your support for tariffs on sugar imports, could you elaborate on why you think that such tariffs are sufficient to encourage Brazil to eliminate its unreasonable acts, policies, and practices? Thank you.

MR. HAGEN: Yes, thank you for the question. It is a sheer issue of oversupplying our market, it has been devastating to our economy as farmers. I can point to a study by North Dakota State University in the last two years, the sugar industry as a whole in the United States has lost 3 billion dollars.

Just last year alone the sugar beet industry across the country lost over 500 dollars per acre. If we continue to do that, we

will not be here next year. We are looking at factories closing in small towns, in Michigan for instance, well everywhere across the countries these factories are in small town America, the towns are employed by the companies.

We will lose small towns, we will lose schools, it is devastating to our industry right now. The current tariffs in place simply aren't quite enough, world sugar is at such a low right now, the tariffs aren't sufficient to hold the sugar out, it is coming in at a level that is below our cost of production.

The foreign governments are subsidizing these sugar industries in foreign countries to the tunes of billions of dollars, we simply can't compete with foreign treasuries, that is the issue at hand, and that is why it needs to be on more than just Brazil, it needs to be across the board, they are not the only bad actor. Thank you.

MR. REYNOLDS: This is a group question

for Mr. Penner, Mr. Sargeantson, and Mr. Carle. If tariffs are imposed, do you believe U.S. manufacturers and users would diversify to other imported sources, or whether it is possible we will see new U.S. investment in domestic organic honey production?

MR. PENNER: I can speak to the portion about U.S. organic production. It's simply not possible for that to come into existence with the limitations with bees, with the limitations for forage, and the other requirements. So, from that aspect, the U.S. commercial beekeeping simply cannot grow into that demand that we have for organic honey.

Michael can talk to some of the other aspects as far as consumer and manufacturing interest.

MR. SARGEANTSON: One thing to add on to Arlen, the USDA regulations would not classify almost all of U.S. conventional honey as organic just by the kind of pesticide residues that may be present. So, beyond the

types of bees that we have kind of highlighted in different testimonies, Africanized versus the bees in the United States, it is also an agriculture issue.

MR. CARLE: From a U.S. production standpoint, I think it is important to understand the order of magnitude of land you would have to control to have that type of investment. So, a bee flies directionally three to five miles when it gathers nectar.

So, to create a forage area like we would need to do that, you have to get a single point in the middle of call it a three mile radius, that is approximately 18000 acres, and have control over that with no commercial agriculture near it. If you can't do that, you have to put a buffer, or a barrier area around it, right?

So, now you need a five mile radius, six mile radius, whatever you think is appropriate, because it is not just who is next to you, it is who is in proximity because of

wind drift. If someone is spraying chemicals or whatever, it is going to blow into your field, and as soon as it does that you have lost any sort of exemption that you might get under USDA regs.

And the amount of investment to do that, you are talking 50000 acres to put a colony in the middle of it, that is 5 to 10 million dollars depending on what you have to do to buy that. Because to do that type of investment you need to control the land. You can't just hope that you don't have someone setup a corn field right next to you, and they're spraying whatever it is that they're spraying, right?

There is just too many barriers that I would prevent you from seeing meaningful U.S. investment to stand up real organic production here at the scale we would need.

MR. SARGEANTSON: And like in terms of other import substitutes, we have all been in the industry since there was an organic

category. Organic honey has been built around Brazilian organic honey, the taste profile is what consumers expect. Over 75 to 80 percent of all imported organic honey comes from Brazil.

And as you have heard from not only the sugar testimonies, but also from the earlier testimony on honey, there is a transition period for hives. So, it's not like all of a sudden India, which produces lower cost honey, could all of a sudden have more organic hives, because there is kind of a 12 to 18 month transition period.

MR. REYNOLDS: Thank you.

MR. HUBLER: This question is for both Mr. Tasman and Ms. Karlin, I am Tyler Hubler from USDA. The question is, as an organic sugar distributor or user, what share of your total organic sugar supply is sourced from domestic producers, and what share of your imported organic sugar comes from Brazil?

And the second part is additionally, if a 25 percent tariff were imposed on Brazilian

organic sugar, would you expect a corresponding increase in the global price of organic sugar, and a shift away from organic sugar? Thank you.

MR. TASMAN: 100 percent of the supply of sugar that I distribute is from Brazil. It comes from the four factories Ms. Bickett had mentioned, I utilize two of those, the largest producers there. A 25 percent imposed tariff on organic sugar would absolutely increase the price of sugar at retail, I deal strictly with retail.

And if I may give you an example, when the TRQ was eliminated back in the middle of 2025, before that time, I'm going to give you a rough and tough number, and it varies with whatever location someone might buy the sugar, whether it be a higher price supermarket, or a discount chain, or whatever.

But roughly the price of a pound of organic sugar at that time prior to that was about 80 cents a pound. After that, it rose to roughly anywhere from a dollar to it's about 1

dollar 20 now when they imposed the 10 percent tariff onto Brazil. So, now it is about 1 dollar 20 a pound with the higher tariff, and the higher duty.

Should this 25 percent tariff be included, the price of sugar in about 6 to 8 months, organic sugar at a retail level would have risen from roughly 80 cents to probably around 1 dollar 40 cents, and I'm within very close ranges, I'm not too far off, it just depends on where you particularly buy it.

But those are the increases, and those are the impacts on the U.S. consumer wanting to simply have a healthy alternative, or product that does not contain pesticides, and does not contain chemical fertilizers.

MR. KARLIN: So, I will add, so Brazil supplies about 50 percent of certified organic sugar in the United States, the rest of it is supplied by Colombia, Paraguay, Argentina, other places. Again, as I mentioned, only seven percent of certified organic sugar in the United

States is produced domestically.

So, we import about half of our sugar from Brazil, our numbers kind of line up with what you might expect. Every year we look for domestic sugar, and we are told that there is no domestic certified organic sugar available. Every year we look for other options, especially as the tariffs were implemented, we look for other options, and we are told that the supplies are already allocated elsewhere.

And to the other question that you raised, I do believe, and we have seen it happen, that a tariff on Brazilian organic sugar imports will just drive the price of all organic sugar imports up to just right below that, right? And so we are going to see this negative impact on American businesses, American dairy farms, American consumers if we see this happen.

MR. HUBLER: Thank you.

MS. PASTER: Thank you. This is Megan Paster from USTR, I actually have one additional question for Mr. Hagen. We have heard a lot of

testimony from the organic sugar industry, and also organic honey, including comments that distinguish those sweeteners from conventional sugar.

And I was wondering if you could respond to that, and tell us if you agree or disagree, and why.

MR. HAGEN: Yeah, thanks for the question. Obviously I am a farmer from Michigan, I don't know that much about the organic sugar industry, or organic bees. I understand they have their market needs just like we do, but we're also treated a little bit differently.

So, I could provide some written statements about that if I had a chance to do some research on it, but I'm not that studied on it, so thank you.

MS. PASTER: Thank you.

MR. BUTLER: Okay, thank you to this panel, thank you for your testimony. Again, we'll take a quick break, and come back with

Panel 6.

(Whereupon, the above-entitled matter went off the record at 2:54 p.m. and resumed at 3:01 p.m.)

MR. BURCH: Will the room please come to order?

MR. BUTLER: Thank you. Okay, this is Panel 6, and let's start with Ms. St. Louis, you have the floor.

MS. ST. LOUIS: Good afternoon, and thank you for the opportunity to testify in today's hearing. My name is Melinda St. Louis, and I am the Global Trade Watch director at Public Citizen, a national consumer rights organization with more than a million members and supporters. For the sake of time today, I'll focus on two points.

First, the USTR is mistaken in finding Brazil's social media and electronic payments regulations violate Section 301. And second, that the USTR should not misuse Section 301 as a fig leaf to implement politically motivated

trade sanctions against Brazil.

Please see our full written comments for details, including on Brazil's intellectual property laws, which we argue provide adequate protection under international obligations, and should be respected to protect public health.

On the first point in our submission we argue that the USTR has wrongly determined that Brazil's laws and policies with respect to social media regulation and electronic payments are unreasonable and burdensome, or restrict U.S. commerce. The USTR's findings fail to consider that First Amendment protections only apply with respect to actions of the U.S. Government.

Brazil is well within its rights as a sovereign country to regulate online speech that is accessible in Brazil. Like all governments, the Brazilian state has a duty to protect the rights of its citizens, democratic order, and democratic processes.

Accordingly, Brazil has legitimate

public policy, and constitutional grounds, such as the prevention of electoral malfeasance, protection of public order, and the protection of children to regulate social media platforms. Brazil's laws in this regard are neither unjustified, nor arbitrary.

Further, it's incorrect to suggest that imposing penalties for breach of Brazil's neutral social media regulations discriminates against or undermines the competitiveness of U.S. companies. In fact, Brazil's courts have issued account blocking and takedown orders to several non-U.S. social media platforms, including TikTok prior to its sale to U.S. investors Kwai and Telegram.

It clearly shows no discriminatory intent to target U.S. companies. And with respect to Brazil's electronic payments regulation, the USTR has failed to consider that PIX is a digital public infrastructure, and not a private commercial enterprise.

PIX provides basic payments

infrastructure, essentially a replacement for physical money, which enables easy, cheap financial transactions. It's analogous to how governments provide public infrastructure such as roads, electricity grids, and even currency.

The motivating idea behind PIX is to enhance financial inclusion, and promote competition in the banking and payments ecosystem. This clear public policy rationale of the deployment of PIX accords with internationally recognized development goals.

And USTR's allegations focus entirely on the supposed commercial consequences of PIX's success for U.S. companies without considering the broader social benefits of digital public infrastructure. In addition, U.S. companies are not prohibited from offering their own digital payment services, or mandated to only use PIX in all circumstances.

In fact it is reported that Google is the largest initiator of transactions on PIX, indicating that the system enables open

participation of service providers from all countries. And finally, the rules applicable to PIX seek to enhance competition, and to protect and empower consumers, and are equally applicable to all private sector service providers, with no discrimination against U.S. companies.

Given the evidence that the findings against Brazil's laws and policies are unsubstantiated, Public Citizen recommends that no action be taken against Brazil on this issue. And secondly in our comments we raise concerns that because the USTR's findings fail to engage with the facts at hand, the results of this investigation may have been predetermined.

The investigation was launched immediately after President Trump's letter to Brazilian Government announcing 50 percent tariffs citing anger over an independent court's treatment of his political ally. And we are concerned that the investigation and findings are an attempt to reconstruct President Trump's

tariff wall first established under IEEPA, and then under Section 122.

The administration was well aware, even before the Supreme Court struck down the IEEPA tariffs, that the use of IEEPA with respect to Brazil was particularly questionable in view of the U.S. trade surplus with the country.

The timing of the investigation and the proposed punitive tariff certainly appear to be an attempt to provide a fig leaf of legal justification for recreating Trump's earlier tariffs that were initiated for political ends, and that have been deemed illegal by the courts.

In conclusion, by carrying out an unjustified investigation against Brazil, and recommending punitive tariffs based on specious findings, the USTR risks further undermining U.S. credibility around the world.

We therefore recommend that the USTR close its current investigation with respect to digital regulations and intellectual property without imposing any punitive sanctions against

Brazil under Section 301. Thank you.

MR. BUTLER: Thank you. Mr. Anthony?

MR. ANTHONY: Good afternoon, my name is Dan Anthony, and I'm here on behalf of We Pay the Tariffs, a non-partisan, grass roots coalition launched in 2025 to highlight tariffs' impact on American small businesses. Over the last year our network has grown to about 1200 small businesses in all 50 states.

I appreciate the opportunity to testify today. We urge the administration not to impose new tariffs on imports from Brazil under Section 301. There are a few simple reasons. First, American businesses have borne the brunt of recent tariff actions, and new Brazil tariffs would be no different.

Second, impacted small businesses have the least ability to influence foreign governments to change policies, which is the intent of Section 301. Finally, even if American small businesses had that power, there is a weak relationship between the issues to

resolve, and the companies or sectors that will bear the cost.

This sets up a lose-lose-lose scenario for We Pay the Tariffs members. As our name suggests, foreigners don't pay the tariffs. Instead, the costs fall hardest on American small business owners. Years of hard work to build their dream, create good jobs, and contribute to their communities can be wiped out very quickly.

Rebuilding may take years if it's possible at all. Findings from a forthcoming We Pay the Tariffs report based on survey responses from about 230 small businesses in 39 states demonstrate those harms. The typical respondent had 7 employees, and paid about $150,000 in extra tariffs since February 2025, or over $20,000 in added costs per employee.

Some paid much more, including a 15-person company that paid 3.5 million dollars in tariffs on imports from Brazil, and is at risk of the additional 25 percent tariffs under

Section 301. At those levels, business as usual simply is impossible, and companies were forced to take numerous actions to survive.

According to our responses, 89 percent reduced their margins, meaning less money left over from each sale. 81 percent raised prices, meaning higher costs for American families and manufacturers. 59 percent took on new debt, and or used personal savings to cover business costs.

59 percent reduced inventory or inventory volumes, meaning less potential for future sales, because they just don't have product on hand. And finally, 30 percent were forced to lay off American workers. About half of the respondents reported that their business declined over the last year, and that tariffs were quote a major factor.

Looking at the upcoming year, most respondents expect tariffs to impact their businesses quote very negatively. Nearly all others expect somewhat negative impacts at

least. As a ten employee company that imports from Brazil said, quote we grew based on work we put into the business in 2023.

While that created growth in 2025, fighting the tariffs caused us to divert attention from growing our business. As a result, we expect a 20 to 30 percent decline in our business in 2026. This is not accounting for the tariffs that are being proposed and discussed today.

Second, while changing countries' practices is the primary goal of Section 301, the harmed American small businesses have little ability to influence such policies. When it comes to tariffs, as someone has spoken to a lot of these businesses, and a lot of others about them, we struggle to get our own government to listen.

The idea that the Government of Brazil is going to change its policies because American small businesses are being harmed, it just doesn't happen, it's a fundamental power

mismatch. And we have to keep in mind that 97 percent of all U.S. importers are small businesses.

So, while everyone thinks about big businesses, these micro businesses, five, ten person companies, that is what drives U.S. importers, and that is who is trying to deal with these types of changes on the fly. Third, the proposed tariffs are a blunt tool that misses the forest for the trees, it is a bad pun intentionally.

We are talking here about a review of environmental policies involving illegal deforestation. The number one wood product imported from Brazil is on the exemption list. And my apologies to Ashley, who is going to speak, who I know very well, that is not to say that all these wood products should be subject to tariffs.

But it is to say that there is a misalignment between the things we want to change, and who will actually pay the cost if we

decide to move ahead with tariffs. In many cases here, and again I have worked with a number of -- I want to be crystal clear that I don't want tariffs on those wood products from Brazil.

Because I have worked with a number of companies who are bringing in product from sustainable pine plantations in Brazil, it grows faster than it grows here, there is lots of reasons to use Brazilian wood that are outside of the rainforest.

But this idea that this is the problem that we're trying to solve, and then we are going to impose tariffs on plastics or handy crafts, there is just this misalignment that I think can't be stressed enough. If the administration proceeds with tariff, it should do so in a manner that minimizes the scope, and avoids as much small business pain as possible.

Exemption processes, while better than universal tariffs, are less accessible to small businesses without lawyers or lobbyists, or the

resources to hire them to secure carve outs. Not imposing tariffs in the first place is the only way to prevent this small business pain, and we urge the administration to do just that. Thank you for your time.

MR. BUTLER: Thank you. Mr. Pinto?

MR. NUNES PINTO: Hi, I'm Vinicius Nunes, independent payment and technology specialist. Good afternoon members of the Committee, it is a pleasure to be here. Let me start with something personal. I have made my life here in the United States, this is home now. I came to contribute, and to help this country lead.

A few months ago I opened my mailbox in Florida, and found a check, a paper check for one cent, a one penny refund from a large American retailer. The stamp to mail it cost 74 cents, the paper, the printing, the processing more still. A business has spent nearly a dollar to send me one single cent.

I spent my whole career trying to

modernize moments just like that one. My name is Vinicius Nunes Pinto, and for more than ten years I have built global payment systems. In Brazil I led the launch of PIX at one of the world's largest payments companies, more than 100 million transactions in the first six months.

Before that, I launched Samsung Pay, the first mobile wallet in South America. Today I work for a technology company here in the U.S., modernizing the payment array of cards, ACH, FedNow, Open banking in a new data economy. I have stood inside both systems, and that is the one perspective I would like to offer this Committee.

Because PIX, at its core, wasn't built to pick winners. PIX is infrastructure, it's a rail, and we don't judge a road by who collects the toll, we judge it by what it lets a whole economy do. The question worth asking isn't who pays at the top of the stack, it's what the rail unlocks underneath.

And here is what I watched it unlock. Before PIX, Brazil was a cash first country, in 2019 more than 75 percent of all payments were made in cash, the market was concentrated. A handful of incumbents, and tens of millions of people with no card, and no bank account at all.

PIX cracked that open almost overnight. In the space it created a wave of fiscal challenger banks rose, and the American capital was right there backing them. The largest is now listed on the New York Stock exchange, another counts one of America's biggest banks as nearly half owner.

Several more drew U.S. investors in early, they helped fund it, and they have shared in the upside. But the broader win was for American companies selling in Brazil, streaming, software, transportation, travel, QSR, retailer marketplaces, and much more. On PIX they collect almost instantly at a fraction of what cards ever cost them.

Money that used to vanish into fees and

float now stay in the businesses. More customers can pay then, because tens of millions who were locked out of the card system can now pay at all. And the card volume itself kept right on growing. When a rail works, the gain spreads to the many, not to the few.

And this to me is really an American story, because we already understand the power of real time rails, it is why we built FedNow at the Federal Reserve, it is why Zelle moves billions between our banks. So, the strategic question in front of us isn't whether someone else's array is fair.

It's whether the United States leads the next layer, the one that connects these systems across borders, so American commerce can capture the upside wherever it sells. That is where I believe the opportunity sits, building the bridge between them. This spring the Federal Reserve proposed a rule that would let FedNow reach across the border for the first time.

I would respectfully suggest the dialogue and cooperation between the United States and Brazil on digital payments, interoperability, open finance, fraud, in time money laundering, cyber security. I began with a story, a paper check for a penny that cost nearly a dollar to mail, let me end with a possibility.

Something we could still create, imagine FedNow and PIX rails connected, an American company in Ohio paid instantly by a business in Sao Paulo at a fraction of today's cost. This is a future worth building. Innovation and cooperation between the United States and Brazil. Thank you.

MR. BUTLER: Thank you. Mr. Pessoa?

MR. PESSOA: Good afternoon. My name is Gustavo Pessoa, I am a professor of economics and finance in Brazil. I study financial market systemic risk and regulation. My written statement is already in the record, I will summarize the main points.

Brazil and the United States have worked for more than 200 years through trade routes and practical cooperation, that is the spirit in which I believe the PIX issue should be addressed. Let me be clear, I do not support tariffs against Brazil because of PIX. Based on the evidence I reviewed, I do not see PIX as illegal or unfair competition against American firms.

USTR has raised a serious question, when a central bank regulates and also operates a major payment system, how do we make sure the system is fair? That is a governance question, it should be addressed with clear rules, not broad tariffs. This is why I propose a digital payment neutrality test.

A public payment system should have fair access, interoperability, clear rules, good data, governance, strong security, and financial integrity. In simple words, it should be open, safe, transparent, and useful for private innovation. PIX is a major public innovation.

In 2024 it processed about 63 billion transactions, and moved about 26 trillion Brazilian reals. By early 2025, it had about 165 million users, and 19 million businesses. These are numbers of a critical financial infrastructure. PIX is also an inclusory story.

Its first year, more than 100 million people used PIX, about 46 million had never made a traditional bank transfer before. PIX helped bring about 70 million people informal financial service. This also helps American companies. When millions of Brazilians enter the formal digital market, they can use the apps, pay for streaming, buy online, receive credit, and access other services.

That expands the market for U.S. firms in technology payments, software, cyber security, and data. The numbers do not show that PIX destroyed private payment tools. Since PIX was launched, the prepaid card transactions almost doubled from about 14 billion in 2020 to about 29 billion in 2024.

More than 900 payment services providers participate in PIX, and Google Pay became the largest payment initiator in the system. The Federal Reserve launched FedNow in 2023, so the issue is not whether a central bank can provide payment infrastructure. The issue is how to govern it well.

My recommendation is simple, USTR should not treat PIX mainly as a tariff problem, it should treat PIX as a governance question about trusted financial infrastructure. A digital payments neutrality test in the United States and Brazil financial infrastructure dialogue would be more precise, and more constructive.

Brazil and the United States should use these moments not to escalate, but to build better rules for the next generation of financial infrastructure. Thank you very much.

MR. BUTLER: Thank you. Ms. Amidon?

MS. AMIDON: Thank you, Chair, and Committee members. My name is Ashley Amidon,

CEO of the International Wood Products Association. IWPA is the leading trade association for the North American international wood products industry.

We advocate for the growth and acceptance of responsible, ethical, and sustainable forest products sourced globally, while supporting communities, trade, and consumers. IWPA is committed to working with the U.S. Government, and key stakeholders to ensure trade in wood products with Brazil neither contributes to illegal deforestation, nor violates the legal sourcing requirements of the Lacey Act.

Brazil's native timber supply chain operates under one of the world's most comprehensive legality assurance frameworks, combining strong legal foundations, advanced monitoring systems, robust enforcement capacity, and innovative deforestation and wildfire preventative programs.

We urge this Committee to reexamine the

assessment of Brazil's anti-deforestation regime described in the proposed action. Brazil's efforts have shown positive and measurable results. According to high resolution satellite imagery, national deforestation fell 32.4 percent in 2024, and again by 23.5 percent in 2025.

Targeting the timber industry, which has shown extreme progress, would punish rather than promote fair trade practices. As the proposed action notes, secondary industries are the primary drivers of deforestation. However, Brazil has demonstrated an ongoing commitment to full supply chain legality.

For example, the forest code framework was recently expanded with a national traceability plan, requiring individual animal tracking by 2032, with phased implementation benchmarks to ensure steady progress towards addressing deforestation caused by agricultural production.

While the proposed action suggests

deficiencies in some areas of Brazilian forest code enforcement, we note that Brazil's environmental protection agency, IBAMA, conducted 9540 forestry inspections between August of 2024 and July of 2025, an increase of 38 percent over the previous reporting period.

And issued environmental fines totaling approximately 520 million U.S. dollars. To the extent there are deficiencies in enforcement, USTR should pursue technical assistance or dispute resolution mechanisms over punitive tariffs, which threaten to undermine the extreme momentum of anti-deforestation work in Brazil.

Given the successful record, IWPA recommends that the United States prioritize bilateral cooperation with Brazil, potentially under the U.S. Brazil agreement on trade and economic cooperation, to strengthen supply chain transparency, and align monitoring, reporting, testing, and verification mechanisms with both countries' requirements.

So that American industries can

continue to thrive, and forests continue to be protected. It is important to recognize that globally sourced wood products are critical for maintaining a strong competitive U.S. manufacturing base.

For instance, tropical timber from Brazil is often specified for its hardness, durability, and moisture resistance because direct domestic alternatives do not exist. Wood is different from most other commodities in that not all species can grow in every country.

This geographic and genetic diversity means that American manufactures in industries as varied as home building, furniture, cabinets, musical instruments, boats, and RVs all rely on competitive access to materials from around the world. If they lose access to global timber such as that from Brazil, our industries become far less competitive globally.

IWPA strongly supports U.S. efforts to combat illegal deforestation, and promote legal and sustainable wood trade. But we also believe

that wherever possible, the U.S. should partner with nations to fight deforestation by ensuring legitimate trade can continue to build value in standing forests.

We support current exemptions for goods covered by 232 actions, and relevant Chapter 44 subheadings listed in the annex. We have also included a discussion of additional items which we recommend USTR consider adding to the annex in our written comments submitted for the record.

In addition we encourage USTR to include a provision to set a maximum combined rate for duties on Brazilian goods if there are multiple Section 301 actions on products of Brazil. This will ensure that the aggregate duty does not exceed what is necessary to achieve the intended policy goals.

We also request that USTR consider phasing in any duties on Brazil, similar to the proposed phase in period in the China Shipbuilding 301 investigation. We believe that

well considered trade actions will best meet the administration's goals to support environmental protection, and promote reciprocal trade.

IWPA hopes to be a partner in this process, and is an ally in the mission to fight deforestation, and promote fair trade practices around the world. Thank you.

MR. BUTLER: Thank you. We will turn to questions now. Again, please introduce yourself and your agency. The first question is from USDA.

MS. GHADIALI: I'm Aysha Ghadiali with the U.S. Department of Agriculture, and my question is for Ms. Amidon. Can you please elaborate on how a 25 percent tariff on Brazilian imports would affect IWPA's U.S. members' costs, supply chain, and ability to source the necessary raw materials they rely on from Brazil?

And can you please elaborate on the additional products included in your comments, and why your members want them excluded?

MS. AMIDON: Thank you for that question, and I have taken notes, and if I forget anything, please let me know at the end. So, in terms of how a 25 percent tariff on Brazil would impact our U.S. members specifically with their supply chain, their sourcing, and cost I believe was the third one.

So, products from Brazil, as I mentioned in both my written and my spoken testimony, are specified based on the specific performance characteristics, often to do with health and safety, and setting aside any aesthetic considerations, because quite frankly that's not what we're here to talk about.

But you often see Brazil products that are specified in things where moisture resistance is key. So, you see them a lot in docks, anything that is going to have marine applications, and or ground applications. If you've ever walked on a boardwalk, there is a very high chance that you are walking on wood that is sourced from Brazil, because it simply

lasts a lot longer.

In cases like that a 25 percent increase is not going to mean that that wood is not specified, because there is no domestic substitute, period, end of discussion. So, it means that if a town such as where my family is from in South Carolina, Charleston wants to replace their boardwalk, it's going to be 25 percent more expensive.

There is not a U.S. substitute that will give you the same longevity, that will have the same resistance to moisture, that will deal with the same level of foot traffic. So, it doesn't really change the sourcing decision, what it changes is the cost. For smaller municipalities, replacing a boardwalk is a significant cost.

And if suddenly you're adding 25 percent to the raw material costs, that becomes something that they either put off as long as they can, or that money has to come from somewhere else. So, that is one specific

example, I'm happy to share others, but that I think is one that has a lot of relevance from a public perspective.

In terms of the sourcing, again, that material, some of the wood that is sourced from Brazil is not available in other places. They have both temperate and tropical, we tend to see a lot, from my member perspective, of the tropical wood that's being sourced in Brazil, and then brought into the United States.

The other thing I want to briefly talk about is the fire rating. Again, some of the woods that are sourced from Brazil have what is called a class A fire rating, and this is not an IWPA industry led thing, this is an actual international rating of woods and how they respond to fire.

And so anytime you have wood that is going to be used in public areas, or private for your home, but again taking that boardwalk, I was just like many of you, looking at a lot of fireworks. A lot of those fireworks are put off

on beach towns. You want to make sure that if you are dealing with anything fire, that those boardwalks are going to have that resistance to fire as well.

So, it really is a lot of different specification factors that go into those sourcing decisions. And I'm sorry, can you please remind me of the second part of your question?

MS. GHADIALI: Can you please elaborate on the additional products included in your comments, and why your members want them excluded?

MS. AMIDON: Correct, yes, thank you so much. So, I do not have all of them memorized, but I do have them printed off in front of me. And what IWPA did, is we did a survey to our members that was anonymous, so I don't know which members requested which. But we asked them what are the products that you are sourcing from Brazil that are not currently included.

And so this list is drawn directly from

U.S. companies that are specifying these products, and are concerned about what a tariff rate would do to them. Dan had a really great statistic, was it 97 or 98 percent of importers are small businesses? The vast majority of my members are small businesses as well.

And so, a 25 percent increase on your products that you are importing, that's a significant cost to a U.S. business. And when I say my members are small business, I don't mean that they are just under the SBA definition, I mean they are 10 people, 15 people, 20 people, the vast majority of them.

And so for the ones that particularly specialize in product from Brazil, a 25 percent increase in the products that they import, that means that they are not hiring, they're maybe firing, they're downsizing. This can have a very significant impact. So, again, these are all sourced directly from our members, and are specific HTS codes that they requested that we bring to you all.

MS. SULLIVAN: Good afternoon. I'm Sarah Sullivan from the Department of the Treasury. This question is for Ms. St. Louis, Mr. Anthony, Mr. Nunes Pinto, and Mr. Pessoa. Could you please elaborate on the bilateral cooperation, institutional dialogue, or other remedy that you would suggest in lieu of tariffs?

MS. ST. LOUIS: Yes, as I mentioned in my testimony, we do not believe that the digital payment system, or the social media regulation in Brazil is unjustified, or arbitrary, or discriminatory against U.S. companies if you look at the facts of the case, so therefore we don't think that it is appropriate at all to have tariffs.

To the extent we would certainly support regulators across borders not through kind of a trade lens, but through a digital regulation lens to be cooperating. I think that that could be beneficial. We also note in our comments that U.S. companies have had ample

opportunity within the Brazilian system to influence the policy making process.

And do have due process in Brazilian courts around these issues as well. And so for that reason, we do not believe that tariffs would be appropriate.

MR. ANTHONY: Thank you. So, this is a general statement here, because I can't say that I am overly familiar here with all of the interactions between the U.S. Government and the Government of Brazil, but if you are looking to exert pressure to get a change in policy, it needs to be the most direct line possible.

I'm not very good at pool, I can hit the cue ball directly into the corner, that's a government to government interaction. The U.S. Government is giving something to Brazil, and it is taking it away if they don't do what you want. That works with any government, it's very simple, it's direct, your intended target is the one who will feel the pain.

With something like tariffs, you're

looking at trying to hit three or four sides of the table before sinking a ball, it is very difficult. We are threatening tariffs on U.S. companies in the hopes that they are high enough to stop buying from Brazilians.

Which scares the Brazilian suppliers in order to pressure the Brazilian Government to make a change that is wholly unrelated to maybe what the industry that's talking about, or raising it has anything to do with. If you are illegally logging in Brazil, and you are selling to China, you do not care if the United States raises tariffs on Brazil, you are unaffected.

So, to the extent that you're looking for solutions, saying we're going to do multiple bank shots and hope that the pressure gets there is destined to fail, it fails repeatedly, it fails constantly and consistently. It needs to be a direct line, it needs to be something that the United States Government is giving or taking something away from the Brazilian Government.

Not hoping that this line of pressure

works its way through multiple systems, because each step of the way you lose effectiveness. And so for me, I get very frustrated by things like this, because it looks like something that is destined to fail, and we will move ahead with anyways.

Because no one actually wants to say the hard things where we have influence, and we're willing to take it away. But that is how you achieve results, not by hoping for a random bank shot to score.

MR. NUNES PINTO: When I suggest dialogue between the U.S. and Brazil for the payments, I am suggesting the Federal Reserve and the Central Bank of Brazil to sit down together, and set the rules, and the interoperability between them to support the international lag, the cross border, to be able to transfer money between those two countries.

So, this is possible in other regions of the world, and we in the U.S., we already have the FedNow system that supports instant

payment in the local region, and Brazil has PIX, with the same proposed. So, why not sit together and cooperate between these two entities in order to build connected rails for them to benefit the two countries' commerce?

MR. PESSOA: PIX is not the largest payment system in the world, we have other similar systems like Ninja, OPE, it's four times larger. So, for this kind of payment system, it can still improve the payments. But no doubt, Brazilian PIX was taking for the whole community in Brazil, a lot of people use, almost 90 percent of the population use.

So, I believe the United States has the largest financial center, should learn from this system, and adapt, and start to use it, and cooperate. Because this wave of technology, it's not going to stop. Thank you.

MS. SULLIVAN: Thank you all for your responses.

MR. BUTLER: Thank you to this panel. We will take a short break.

(Whereupon, the above-entitled matter went off the record at 3:38 p.m. and resumed at 3:46 p.m.)

MR. BUTLER: Okay, as we begin Panel 7, since we haven't done it for a few panels, why don't we introduce ourselves again? So we have a few new panelists as well. We'll start with the Department of State.

MR. WESCH: Good afternoon. I'm Ricky Wesch from the State Department.

MS. NEUMANN: Hello. Sabina Neumann from the US Department of Agriculture.

MR. REYNOLDS: Good afternoon. I'm Tobias Reynolds, Department of Commerce, International Trade Administration.

MS. CARSON: Good afternoon. My name's Tracy Carson. I'm with the Department of Health and Human Services.

MR. HICKS: And, good afternoon. My name's Randall Hicks from the U.S. Department of Labor.

MR. VOLTAGGIO: Good afternoon. I'm

Nicholas Voltaggio from the Department of the Treasury.

MS. PASTER: Hello. I'm Megan Paster with USTR.

MR. BUTLER: And I'm Philip Butler, also with USTR.

Okay, so let's get started with our first panelist. Mr. Santos, the floor is yours.

MR. SANTOS: Thank you, Mr. Chair. Good afternoon to everyone, members of the committee, distinguished guests here present today. My name is Rodrigo Ouro Preto, and it's an honor to appear as vice president of the Brazilian IP Association, ABPI. ABPI is one of the oldest associations in Brazil. We represent over 900 members, and we are the only organization active in IP public debate that is not affiliated with any particular economic or governmental interests. We are ardent defenders of a strong IP system, one that attracts foreign investment and offers local industry the tools to protect innovation and compete both in Brazil and

abroad. We believe that owning a thriving IP system will allow Brazil to live up to its potential.

We take the USTR's concerns seriously, and do not dispute that Brazil's IP system has areas that can and should improve, but we do question the idea that those efficiencies are so severe as to warrant the imposition of 25 percent additional tariffs on Brazilian products. Like a newly large and complex intellectual property system, there are opportunities for institutional and operational improvement. In this spirit, ABPI considers it important to present objective elements that differ from the findings of the USTR report, and that may contribute to a proper and balanced assessment of the issues related to the protection of intellectual property in Brazil. Before doing so, it is worth saying that US companies operating in Brazil receive treatment equivalent to that afforded to domestic rights holders in both administrative proceedings and

in the judiciary, which is formed by specialized courts and exhibit effective enforcement mechanisms. ABPI is not aware of any law, practice, or procedure that discriminates against foreign IP holders, or less so against US companies.

The USTR report identifies three areas of concern; let me briefly lean to each of them. First, in the area of enforcement against counterfeiting and piracy, the Federal Reserve Service implemented uniform seizure measures that resulted in a genuine multi-agency enforcement infrastructure. Indeed, in December, early December of 2025, ADR number three of 2025 was implemented, authorizing customs authorities to detain suspected counterfeit goods on their own initiative, ex officio, without requiring prior court order, which was very common at our borders, and depending on where the products came in through. This directly addressed the ambiguity that had previously hampered border enforcement. On

digital piracy, Operation 404, coordinated by the Ministry of Justice, has completed eight phases since 2019, taking down more than 3,000 websites and applications. In its most recent phase, in November 2025, 535 websites were blocked, 44 warrants were executed, and the United States itself participated as an observer of the Brazilian methodology. Criminal sentence followed. Brazil's national anti-piracy policy has now entered the 26-29 cycle, with a focus on digital enforcement and content traceability. Unseen is normative instruction number 174, issued in April of this year, created an administrative procedure to block unauthorized audiovisual content within 48 hours, including real-time live broadcasts. Amatel, the regulatory agency of telecommunication, meanwhile, has blocked more than 24,000 IP addresses and seized 1.5 million illegal set-top boxes.

Second, the topic of anti-piracy measures, we fight consistency and continuity.

The National Intellectual Property Strategy, established by decree number 10886 of 2021 and coordinated by multiple ministries, provides precisely the institutional continuity that the USTR report says is missing. APEPI participates in that framework, which operates through biannual action plans that define priorities and accountability mechanisms to the 2026-29 anti-piracy plan is already in force. The third concern involves patent examination delays, especially in bio-pharmaceuticals. Here, the Patent Backlog Reduction Program presents measurable and documented progress. The program reduced the stock of pending applications from 147,000 in 2019 to just 527 in January 2026. Average examination time has fallen from 4.7 years in 2023 to 4.3 years in 2025, with a target of three and a half years by the end of the 2026. These are not aspirational goals; these are documented results.

And our conclusion is this. Brazil's IP system is far from perfect, and ABPI is the

first to say so, but constant progress is being implemented across all branches of government and multiple fronts. The imposition of duties is not a constructive solution. It would undermine progress already made and the very conditions that allow further reform to advance. We firmly believe that if the U.S. Government is willing to continue to work alongside Brazilian authority--

MR. BUTLER: Thank you. Thank you. Your time has expired.

MR. SANTOS: Thank you.

MR. BUTLER: Thank you. Mr. Bliley.

MR. BLILEY: Good afternoon, and thank you for the opportunity to appear today. My name is Chris Bliley, and I'm the Senior Vice President of Regulatory Affairs for Growth Energy. Growth Energy is the nation's largest association of ethanol producers, collectively representing more than half of our country's total ethanol production. We greatly appreciate the efforts of the U.S. Trade Representative,

the USTR team, other agencies. We strongly support the preliminary determination and proposed remedies to restore balanced trade between our countries. As the world's leaders in ethanol production, the U.S. and Brazil enjoyed a fruitful period with only de minimis tariffs from 2011 until 2017. Since 2011, Brazilian ethanol has also enjoyed full participation in our national biofuels policy, the Renewable Fuel Standard, or RFS. However, beginning in 2017, Brazil unilaterally imposed a tariff rate quota followed by straight tariffs on U.S. ethanol exported to Brazil, and we've continued to see other actions and policies towards U.S. ethanol that are unfair, restrictive, and discriminatory.

For example, as mentioned, Brazil has and continues to fully participate and economically benefit from the RFS since its inception. Brazil has also actively participated and benefitted from state low-carbon fuel policies, such as those found in

California, Oregon, Washington, and now New Mexico and Hawai'i. Under the RFS, Brazil applied for and received an alternative compliance approach. However, when Brazil launched its own Renovo Bio program in 2017, it kept out U.S. ethanol producers. Since then, and despite significant engagement, Brazil has rejected U.S. requests and overtures for alternative compliance approaches, and instead requires unrealistic demands on U.S. ethanol producers given the differences in our laws, agricultural practices, and supply chains. Even today, after nearly a decade, there is but one approved U.S. ethanol producer on feedstock eligibility in the Renovo Bio program, and less than 1 percent of its feedstock is eligible compared to Brazil's average 86 percent feedstock eligibility.

Additionally, Brazil continues to stoke unfounded claims about land-use change attributed to U.S. ethanol, yet the land-use change and deforestation continue in Brazil.

And remarkably, we are charged a land-use penalty by regulators both here and abroad for things that are occurring in Brazil. These unfounded penalties directly harm our ethanol exports to the United Kingdom, Japan, and the European Union, and are inherent barriers to the use of U.S. ethanol as a marine or sustainable aviation fuel, all while Brazil continues to seek a free pass for its own producers. It makes no sense. Thank you for recognizing the dynamics at play and recognizing the lack of transparency. Thank you as well for determining cause for action as part of this Section 301 investigation. In addition to our support for your determination and remedies, we also offer additional remedies for your consideration.

One, review Brazil's participation in the RFS program given the lack of real, equitable, meaningful, and fair access to Renovo Bio, as well as continued concerns on land-use and deforestation. Two, exclude Brazilian ethanol from a duty drawback in the production

of ethyl tertiary butyl ether, ETBE, which is then re-exported to Japan. Three, issue a demarche to the U.S. embassies to actively refute Brazil's sustainability claims on its second crop, corn. Four, raise Renovo Bio at the World Trade Organization for the program's lack of compliance with the technical barriers to the trade agreement. Five, review Brazil's status on the list of eligible countries as part of any future generalized system of preferences. And finally, six, ensure U.S. ethanol exports to the EU are treated no less favorably than Brazilian ethanol is treated under the EU-Mercosur Trade Agreement. Thank you very much for your efforts and for considering our comments. Happy to answer any questions and appreciate your time.

MR. BUTLER: Thank you. Mr. Frostic.

MR. FROSTIC: Good afternoon. Thank you for this opportunity to appear before you today. My name is Matt Frostic, and I am the first Vice President of the National Corn

Growers Association, or NCGA. NCGA has over 36,000 dues-paying members representing half a million corn growers across the United States. NCGA's mission is to protect and advance the interests of corn growers. Personally, I'm a farmer from Applegate, Michigan and grow corn, soybeans, edible beans, sugar beets, and in addition to beef cattle. U.S. corn growers plant and harvest the highest quality and most efficient corn crop in the world. We depend on export markets for both corn and ethanol so farmers can make a living and feed their families. And we play by the rules, support competition, and impose trade barriers.

Unfortunately, Brazil does not value a level playing field. Over the past decade, Brazil has taken targeted trade actions aimed at evaporating current and future demand for U.S. farmers. In our view, the Section 301 investigation into Brazil's trade actions is long overdue. We were pleased to see that the Office of the U.S. Trade Representative found

that Brazil's policies harmed corn growers. We support the proposed 25 percent tariff that would include Brazilian ethanol imports. We urge this investigation to consider the full scope of Brazil's actions that penalize U.S. corn growers.

The bilateral ethanol trade between the United States and Brazil is well documented and captured in the USTR's findings and proposed action. Brazil abandoned a cooperative trading environment and U.S. corn growers felt the effects immediately as the market access rapidly declined. This happened while Brazilian sugarcane ethanol was being imported into the United States at an increasing rate. For these reasons, we support USTR's proposed 25 percent tariff on Brazilian ethanol. As USTR considers additional proposed action to impose import restrictions, we would call attention to Brazil's refusal to allow U.S. ethanol producers to obtain approval for their domestic biofuels program called RenovaBio. This is clear

discrimination against U.S. ethanol producers.

While the U.S. companies have been allowed to submit applications, only one has been approved. Even if U.S. ethanol producers were granted approval, RenovaBio includes stronger incentives for Brazilian ethanol over the U.S. ethanol. United States do not impose such restrictions on participation in our renewable fuel standard and Brazilian companies are allowed to participate. Further, Brazil's international advocacy touting a low environmental footprint is nothing short of a guise to artificially boost their carbon intensity score over American farmers. Brazil claims that its corn is a secondary crop, such that imports and land used is more minor compared to the United States, but this could not be more incorrect, as land conversion from grassland or rainforests in Brazil is not properly documented.

If left unchecked, Brazil will continue to push for international policies that boost

their ethanol over U.S. ethanol. We appreciate the initiation of this investigation. We're pleased with the findings and proposed action. We urge USTR to consider a wide range of options to encompass the full scope of Brazil's harmful actions. We stand ready to work with the Trump administration to fix years of economic harm and fight for what we deserve. Thank you for your time and I look forward to answering any questions.

MR. BUTLER: Thank you. Mr. Hubbard.

MR. HUBBARD: Thank you, Mr. Chairman and members of the 301 Committee. Good afternoon, my name is Ed Hubbard, I'm General Counsel and Vice President of Government Affairs for the Renewable Fuels Association. We're the leading trade association representing the U.S. ethanol industry. Founded in 1981, we've been the voice of the U.S. ethanol industry for more than four decades. Last month, USTR issued a notice of determination affirmatively finding that certain of Brazil's acts, policies and

practices related to ethanol market access are unreasonable and burden or restrict U.S. commerce and are therefore actionable and remediable under Section 301. Specifically, the notice concludes that Brazil, in discontinuing its previously balanced tariff treatment and failing to reciprocate U.S. tariff treatment, has denied fair and equitable market opportunities for U.S. ethanol producers. The notice further concludes that Brazil's acts, policies and practices in connection therewith are unreasonable and burden or restrict U.S. commerce and thereby warrant the application of a universal 25 percent reciprocal tariff on all imports from Brazil.

The U.S. ethanol industry agrees completely with the findings as outlined in the notice of determination and strongly supports the imposition of a 25 percent reciprocal tariff on Brazil's imports as a reasonable and legally justifiable remedy under Section 301. Consistent with USTR's notice of determination,

the RFA agrees with the argument that Brazil, by discontinuing its previously balanced treatment, has denied fair and equitable market opportunities. Prior to the implementation of the punitive trade barriers, Brazil and the United States enjoyed an open and efficient two-way trading relationship in ethanol. However, beginning in 2017, Brazil unilaterally began abandoning this mutually beneficial approach, instead turning to a pro-tariff policy clearly erected in an effort to disadvantage U.S. ethanol imports.

As a result of this newly applied tariff regime, U.S. fuel ethanol exports to Brazil fell to zero in 2023, just 43 million in 2024 and 68 million in 2025. And despite this small increase in 2024 and 2025, exports to Brazil accounted for just 1.3 percent of total U.S. ethanol exports and 1.8 percent of U.S. ethanol exports in 2025 after accounting for approximately 1.3 percent of total U.S. exports as recently as 2018. Finally, to add insult to

injury, at the same time that Brazil's government has imposed this restrictive tariff, Brazilian ethanol exporters have continued to benefit from relatively open U.S. market access with Brazilian ethanol actually receiving beneficial treatment under the U.S. Renewable Fuel Standard and certain low carbon fuel standards. Despite receiving beneficial treatment like that, and in addition to imposing the punitive tariff on U.S. ethanol imports, Brazil continues to impose burdensome restrictions on U.S. ethanol producers with respect to their new RenovaBio program.

In 2020, the program was introduced and began implementing a new national biofuels policy known as RenovaBio designed to reduce the carbon intensity of Brazil's transportation fuel matrix by increasing the production and utilization of biofuels. The RenovaBio program is expected to generate five billion gallons of new biofuel demand through 2030. However, after five years of implementation, U.S. participation

has been virtually non-existent.

In fact, not a single plant has been fully certified to produce CBIOs by Brazil's ANP. While it was reported just a week prior to the announcement or before the investigation was initiated, this investigation was initiated, it was announced that one company was partially certified, but it still remains clear whether the facility has been able to successfully generate and sell CBIOs. The current design of the program and its certifying mechanism, RenovaCalc, disadvantages U.S. ethanol producers due to its flawed life cycle assessment of corn, its inequitable land use traceability standards, and three, its extensive and unworkable data requirements for U.S. corn ethanol plants and by limiting RenovaBio certification, U.S. ethanol exports to Brazil are severely disadvantaged and are losing competitiveness against domestic product.

So we do support strongly the 25 percent tariff on all imports as legally

permissible and as well as appropriately sized. While USTR has decided to apply the duty universally against other goods from Brazil and has not limited to ethanol imports, we believe it's appropriately applied to allow the U.S. to successfully reach an amount equivalent in market value to the lost value resulting from Brazil's imposition of tariffs on U.S. ethanol imports. In light of the above, the RFA is in strong support of the reciprocal tariff as applied to all goods from Brazil. Once again, we thank you for the opportunity to speak and greatly appreciate the opportunity to provide information as well as provide any answers to questions you may have. Thank you very much.

MR. BUTLER: Thank you. Ms. Almeida.

MS. Almeida: Good afternoon. My name is Andrea Verissimo, Director of International Affairs and Communications for UNEM, the Brazilian Corn Ethanol Association. I have testified before this committee last year and returned today to respond about ethanol market

access. The determination's only theory is that Brazil abandoned bilateral cooperation by reinstating an 18 percent tariff in 2017, a tariff that is most favored nation, applied identically to every country without a preferential agreement and set below both Brazil's 35 percent WTO bound rate and the 20 percent Mercosur common external tariff. No bilateral agreement ever committed Brazil to zero. On reciprocity, the U.S. today applies a combined 12.5 percent tariff on Brazilian ethanol, close to Brazil's 18 percent, and only that close because U.S. emergency tariffs were struck down by the Supreme Court in February 2026 and replaced by a surcharge that itself expires by law next month. A new 25 percent tariff would not close that gap. It would push the U.S. rate to roughly 37.5 percent, more than double Brazil's, adding to the same instability.

You will hear that the U.S. ethanol exports to Brazil fell from 489 million gallons in 2018 to 28 million in 2024. The reason is

structural, not tariff driven. Brazil's corn ethanol industry grew 58-fold over that period at roughly 57 percent a year because corn can be stored and processed year-round, filling the seasonal gap U.S. imports used to occupy, reinforced by oil prices and both countries' blending mandates. U.S. exports to Brazil were in fact higher in the 2024-25 season under an 18 percent tariff than in 22-23 at zero tariff. UNEM, UNICA and the Brazilian government raised this point in their comments; the determination doesn't respond to it. Both countries can do more on blending; Brazil has done its part. The 2024 fuel of the future law raised our mandatory blends to 30 percent in 2025 with a ceiling of 35 percent already authorized. The U.S. has a comparable opportunity pending to make nationwide E15 permanent. Higher blends in both countries cut emissions and balance the same domestic supply and demand this proceeding is really about.

And this is not a one-way street; the

two sectors are deeply integrated. Since 2018, Brazil's corn ethanol sector has purchased over $734 million in U.S. equipment, technology and inputs. And American-owned ethanol plants in Brazil have distributed over $338 million in dividends to U.S. shareholders. A U.S. private equity firm recently announced a $2 billion investment in a Brazilian sustainable aviation fuel plant targeting production by 2030. We are partners and customers, not rivals splitting a shrinking pie, and that integration is unique to the corn ethanol relationship I represent. On RenovaBio, ANP issued two technical reports on grain and vegetable oil chain of custody and on biofuel importer certification, specifically to ease U.S. producer certification, drawing on the U.S. renewable fuel standard. The United States is the only foreign country to receive this dedicated facilitation. A finding of unreasonable treatment that ignores it is incomplete on its face.

The U.S. ethanol industry is not the

one being harmed here. U.S. ethanol exports reached a record 2.13 billion gallons in the marketing year 24-25, up 23 percent and still climbing. Brazil, even with its tariff, remained one of the top 10 importers of U.S. ethanol at 41.4 million gallons, and Brazil's own trade data shows that value is rising every year since 2023, from 500,000 to 50 million to 68 million to 119 million in just the first half of 2026, already more than all of 2025. A 25 percent tariff aimed at the relationship that keeps getting stronger is solving a problem that the data doesn't show. UNAM respectfully requests that USTR decline to impose tariffs on ethanol in this proceeding. Brazil's ethanol market access regime is a non-discriminatory, environmentally rigorous, and open to U.S. participation. It doesn't meet the statutory criteria under Section 301. We urge USTR to protect the U.S. economy from unnecessary disruption and instead pursue a cooperative path globally. Sustainable aviation fuel,

sustainable marine fuel, and the markets that will drive most new biofuel demand by 2030. Thank you very much.

MR. BUTLER: Thank you, Mr. Figueiredo.

MR. FIGUEIREDO: Thank you, Mr. Chairman. Dear Committee, my name is Celso Figueiredo, and I speak on behalf of the Brazilian Sugarcane and Bioenergy Industry Association, UNICA. UNICA respectfully submits that USTR should reconsider its actionability finding regarding Brazil's ethanol market access and should decline to impose any punitive tariff or remedial measure in the ethanol sector. Section 301B requires more than disagreement with a foreign policy; it requires two cumulative determinations. First, that the act, policy, or practice at issue is unreasonable or discriminatory; and second, that it burdens or restricts U.S. commerce. The determination does not satisfy that standard with respect to Brazil's ethanol tariff. Brazil's tariff is applied on a most favored nation basis and does

not discriminate the United States. So a tariff that's MFM and consistent with WTO rules cannot be treated as unreasonable without a proper explanation.

The main arguments that Brazil 2017 tariff rate quota was an unjustifiable departure from bilateral cooperation, but there was no bilateral binding commitment requiring that Brazil maintain zero or reduced tariffs on U.S. ethanol. Brazil's prior tariff suspension was a unilateral domestic trade policy decision to attend a specific shortage that happened in Brazil, not a treaty obligation, not a WTO concession, and not a binding market access commitment. Even the Brazil-U.S. 2020 joint statement called for future discussions on ethanol and sugar market access in both countries, and it did not impose a present obligation on Brazil to maintain any specific tariff level, and neither to the U.S.

So the decline in the ethanol exports to Brazil, the U.S. ethanol exports to Brazil,

reflects broader market forces, including direct expansion of Brazil's domestic core ethanol industry, changes in supply and demand, oil market conditions, regulatory developments, and blending mandates in both countries. It is therefore reductionist to attribute bilateral ethanol trade flows solely to Brazil's current tariff; this is precisely where the determination is deficient. Sorry to say that. UNICA presented detailed evidence regarding the actual dynamics of the ethanol market, but those arguments were never addressed. We know that USTR is not required to respond to every comment in detail, but the USTR cannot also ignore material evidence and key arguments that directly affect the statutory findings it is required to make. By failing to engage with UNICA's core evidence, determination does not provide the reasoned explanation required to support a finding that Brazil's ethanol tariff is unreasonable or that it burdens U.S. commerce.

The determination also overlooks the broader bilateral context. The United States currently applies substantially higher tariffs on Brazil ethanols than before. It also maintains highly restrictive access for Brazilian sugar through a tariff rate quota duty. On the Brazilian side, the Brazilian program, RenovaBio, further confirms that Brazil market is open to U.S. participation. The program is voluntary, non-discriminatory, and applies uniform criteria to domestic and foreign producers equally. Brazil has even prepared technical reports specifically to facilitate U.S. producer participation, and there is already a U.S. company enabled and operating in the program.

Finally, punitive tariffs would harm U.S. interests. Brazilian sugar cane ethanol has a low carbon intensity profile and is used by U.S. refiners and blenders to meet clean fuel requirements. A tariff on Brazilian ethanol would raise costs and increase pressures on U.S.

consumers. For these reasons, UNICA respectfully requests that USTR reconsider the actionability finding, remand the determination for substantive engagement with the record, and decline to impose any punitive tariff or other remedial measure against Brazilian ethanol sector. Thank you very much.

MR. BUTLER: Thank you. We'll turn to questions now; the first question is from HHS.

MS. CARSON: Thank you. This is from Mr. Preto Santos. So my name is Tracy Carson with our Department of Health and Human Services. So from your written testimony, and I'm not sure that you were able to speak to it during your oral testimony, but could you please elaborate on the constructive dialogue, institutional cooperation, and mutual respect for international commitments undertaking both countries that was in your written statement? And in particular, does this refer to the engagement with Brazil in the Special 301 Review?

MR. SANTOS: Well, thank you for the question. That's very, very interesting. Yes, the Brazilian government, not only the executive branch, but the legislative and the judiciary has worked hand in hand with the US in many instances. At this very moment, there is a course for federal judges; the first class just happened two weeks ago in Brasilia. I opened the table for the course and US judges are participating and European judges are participating in that course to train Brazilian federal judges in matters of IP. So in multiple instances, there is collaboration and the two countries are working together. The same thing happens through the executive with the Brazilian Patent Trademark Office is open. The doors are always open to representatives from the USPTO. I think the president, I can't remember the year now, of the USPTO went to the Brazilian--the Congress of ABPI, which happened in Rio de Janeiro; this was maybe four years ago and gave a presentation in the plenary session about the

workings of the USPTO and that was compared to the Brazilian Patent and Trademark Office, and they had meetings prior to that session and then after the session. And so there's a lot of collaboration between the two countries that is going on every day and we just sometimes don't realize it.

MR. HICKS: Good afternoon, once again. My name is Randall Hicks with the Department of Labor. This is a group question for Mr. Bliley, Mr. Frostic and Mr. Hubbard. Please expand on why you think that the proposed remedy of a 25 percent tariff on the import of most Brazilian goods would be sufficient to encourage Brazil to eliminate its unreasonable acts, policies and practices.

MR. BLILEY: Yeah, I mean, I think a lot of our collective testimony talked about this. Yes, it's broad, but I think it shows the seriousness of this investigation. We enjoyed a period of tariff-free bilateral trade between the two countries. We're leaders. As you

heard, Brazil is certainly moving forward with higher ethanol blends, but we have encouraged them to take down their tariff. We encouraged them for years to take down their tariff rate quota. Unfortunately, there hasn't been a response. And so I think this shows a strong response from this Government. And I think it's one that we strongly support.

MR. FROSTIC: I would echo Chris's sentiments and just the idea that the corn industry right now has so much product on hand and that we need to free our markets overseas and wherever to extend our markets to have a stronger industry. I think when we can compete on a level playing field, we're extremely competitive, and with bringing this type of tariff, like Chris said, brings some seriousness to negotiations and could bring us in a level playing field for the future.

MR. HUBBARD: And I will certainly try to echo and amplify that a little bit. I think one of the things that Section 301, when it

looks at remedies, it tries to prioritize an import tariff over import restrictions. And I think from the RFA's perspective, the 25 percent reciprocal duty, while a little bit larger than the 18 percent that's being imposed on us, I think it does reflect kind of a longstanding-- the length of the negotiations that have been going on around this. In addition to that, that's one of the reasons why I raised the concerns and I'm sure my other colleagues did as well, raised the concerns regarding RenovaBio. We certainly would arguably look, if we're denied RenovaBio, the reciprocal response arguably would be to deny RFS, right? That would--their program versus our program, we should have mutual access to. And I think that's one of the reasons why we think by trying to preserve that prioritization for import tariffs, as opposed to import restrictions, when you're talking about a remedy, but also increasing it a little bit so that we're able to address that as well.

And then moving beyond just ethanol and going to all imports because we haven't imported a great deal of ethanol from Brazil. Part of the reason why we are, I think, doing well is our ethanol is the lowest cost ethanol on the planet. And that's purely the reason of our ability to export significant volumes around the globe beyond Brazil. So to the extent that we're trying to get them to the table with respect to commodities that may not be completely related to ethanol, I think the desire is to encourage them back to the table and really start negotiating a fairer agreement because the future we are talking about is sustainable maritime fuel and sustainable aviation fuel and so many other business opportunities that the industries have together.

MR. BUTLER: Thank you very much.

MS. NEUMANN: Hi, Sabina Neumann from the US Department of Agriculture. This question is for the representatives from Brazil of our ethanol industry. Miss--I hope I get your name

right--Verissimo de Almeida and Mr. Figueiredo. So here's the question. Can you provide some additional details on your estimates about the potential economic impact of the 25 percent tariff on Brazilian ethanol exports to the United States and any impacts that may have on US customers?

MS. ALMEIDA: One thing that I think is important to remember is that the whole changes in the export scenario to Brazil have started after the Brazilian corn ethanol industry began. So we are not going to see the levels we had before in terms of imports because we really don't have that demand anymore. Discussing tariffs among the two largest producers in the world doesn't seem like the best scenario in my professional view. We are the two largest exporters and there are two other hundred nations that demand renewable biofuels. Rather than discussing trade among ourselves, I guess we should be discussing how can we best harmonize rules and methodologies that measure

ILUC or carbon emissions so that we can be able to access markets internationally. So I believe rather than imposing tariffs, the best would be to have bilateral cooperation between Brazil and the US so that we can fight for better market access worldwide.

MR. FIGUEIREDO: I'd complement saying that Brazil's ethanol exports to US are quite important to our sector. We hope that we can become more complementary in terms of commerce between US and Brazil. I'd say that in terms of impact on the Brazilian exports, we believe that we have a very competitive product. But even in this situation, a 25 percent tariff affects a lot the competitive of the product, the price of the product. And Brazil has exported to US around $180 million in terms of value last year. And I believe that this would be affected by additional tariffs on that issue. But I would like to add that in any case, US has already established additional tariffs on Brazil's ethanol by either IEPA last year or even the

Section 122 this year. And I believe that it's not the way that we want to follow with the United States. And we would like to move toward a more cooperative trend and a cooperative path. And I believe that as long as my other colleagues here are accusing that the whole cooperation was affected by RenovaBio, I would reinforce that the program is non-discriminatory. The same requisites and the same standards that are applied to US producers are applied to the Brazilian producers as well. For this reason, I would reinforce that the way, the path that we would like to follow is not applying tariffs and not applying reciprocal measures by the Brazilian side as well. Thank you for your question.

MS. NEUMANN: Thank you very much.

MR. REYNOLDS: And I have just a question for Mr. Bliley. Can you elaborate on your statement that American ethanol producers are charged land use penalties based on actions occurring in Brazil?

MR. BLILEY: Yeah. So if you look at the RFS, if you look at our state low carbon fuel policies, if you look at other carbon programs around the world, there is nearly universally a value for indirect land use change. There is a great debate about whether that's--about the theory of indirect land use change or induced land use change, but a lot of it is predicated on the fact that if you increase ethanol production in the US, that you are somehow clearing land or deforesting in Brazil. And so we are being charged about what's occurring in Brazil and frankly, we have argued about the value all the time. And at the same time, you have others who are saying that we should have a zero ILUC penalty. And Matt has talked about what our farmers are able to do when the rules are fair. Us being charged a penalty for land use change that occurs in Brazil, it just makes little to no sense, especially for a state low carbon fuel program within the United States.

MR. REYNOLDS: Thank you.

MR. BUTLER: Okay. Thank you to this panel. Thank you to all the panels today. This concludes our hearing for today. We will pick up tomorrow morning at 10 a.m. We are going to be in Hearing Room A tomorrow. And this room, there will be the forced labor import band hearings. So we'll see you tomorrow. Thank you.

(Whereupon, the above-entitled matter went off the record at 4:29 p.m.)

C E R T I F I C A T E

This is to certify that the foregoing transcript was duly recorded and accurately transcribed under my direction; further, that said transcript is a true and accurate record of the proceedings; and that I am neither counsel for, related to, nor employed by any of the parties to this action in which this matter was taken; and further that I am not a relative nor an employee of any of the parties nor counsel employed by the parties, and I am not financially or otherwise interested in the outcome of the action.



Shakil Azizi

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